Common section

Sadly, racism is still a harsh reality for many African Americans. Racial segregation in schools is back to levels of the late 1960s. According to the U.S. Bureau of Labor Statistics, African Americans in 2018 earned only about three-quarters of what European Americans earn, and the unemployment rate was almost twice as high. In addition, black men are five times more likely than white men to end up in jail. In this chapter we'll be looking at some of these issues involving racism and economic inequality, both in the United States and globally.

DEFINING THE KEY TERMS

Race is a loose classification of groups of people based on physical characteristics. Race is more than just a set of physical characteristics, however; it is how people define themselves and others. As such, race is also a social construct. For example, although Jews were singled out as a distinct, inferior race in Nazi Germany, in the United States Jews are generally regarded as white. Hispanics, on the other hand, despite their physical and cultural diversity, are sometimes classified as a race in the United States.

Racism is an ideology or worldview that makes race one of the key defining characteristics of a person. Two fundamental premises of racism are (1) humans can be divided into distinct biological groups and (2) some of these groups are morally inferior to others. The Nazi worldview of Aryan superiority was based on an elaborate pseudoscientific description of Jewish biological inferiority. Slavery was also bolstered by scientific theories of biological inferiority.321Dr. W. H. Holcombe of Virginia wrote in 1861: "The Negro is not a white man with a black skin, but of a different species, … the hopeless physical and mental inferior [of the white, and] organically constituted to be an agricultural laborer in tropical climates—a strong animal machine."[1]

Because racial groups are seen as inherently different, racism leads to an "us/other" mentality, thereby justifying granting privileges to certain groups while denigrating others. The "other" is seen as contaminated and to be avoided. The "one drop" of blood criterion, which designates anyone as black who has even one black ancestor, and the scrutinizing of the pasts of Germans for Jewish ancestry illustrate this fear of racial contamination.

Racism implies prejudice. **Prejudice** is based on negative feelings and stereotypes rather than reason. Racist stereotypes can also be used to justify war and police action, as in the stereotype of the Arab terrorist and the violent young black man. Globally, racism manifests itself in the way affluent nations treat nations whose people are predominantly of non-European descent.

Discrimination occurs when we treat people differently based on their group membership. Unjust discrimination occurs when we base our actions on prejudices rather than relevant differences. Racial discrimination can take many forms, including hate speech, fear of immigration from Hispanic countries, and our lack of response to genocide and the suffering of refugees in the Sudan. (See Case Study 4: *Racism, Colonialism, and the Conflict in Darfur*.)

Racism occurs on two levels—the personal and the institutional. **Multiculturalists** believe that racism is based primarily on individual ignorance and that education is the solution. Critical race theorists emphasize the political and social aspects of racism that privilege certain interpretations of

Institutional racism affects foreign as well as domestic policy. The use of people in Third World nations, as well as nonwhite immigrants in this country, as sources of cheap labor reflects institutional racism. Indeed, the very term **Third World** reflects the Western belief in the inferiority of non-Western countries.

Sometimes institutional racism is indirect. For example, the funding of schools with local, rather than state or federal, taxes means that children from poorer neighborhoods, which may be predominantly black, receive an inferior education. Patterns of environmental use, such as the destruction of American Indian lands by mining companies and the placement of toxic waste sites near minority communities, also reflect institutional racism. (See Case Study 6: *Environmental Racism in Flint, Michigan*.)

Institutional racism is perpetuated by the media as well as by legal and religious institutions. The 1915 film *The Birth of a Nation*, based on the best-selling book *The Clansman*, degraded blacks and glorified the Ku Klux Klan. The movie was an instant hit, at least with white people.

322

Like sexism, racism is embedded in our everyday language. The term *American* is assumed to mean white, usually white male. Other groups of Americans are distinguished from "real" Americans by the use of qualifying terms, as in *African American, Asian American, Arab American*, or *Native American*. In contrast, one rarely hears the term *European American*.

THE PHILOSOPHERS ON RACISM

Although the ancient Greek philosophers did not directly address the issue, the elitist theories of Aristotle and Plato have been used—or, more correctly, misused—to justify racism. In his *Republic*, Plato argued that those with the greatest inherited capacity for moral and intellectual attainment should be educated to become the rulers. According to Aristotle, certain humans are more highly developed or perfect in terms of virtue and reason. Those who are more perfected deserve more of what is good than those who are less perfected. Although Aristotle believed that some humans are "slaves by nature" and exist to serve those who are more perfected, he did not associate slavery with any particular race.

During the seventeenth and eighteenth centuries, racism was incorporated into Western philosophy in part as a response to the need to morally justify European colonialism. John Locke's natural rights ethics, for example, while promoting a doctrine of equal human rights, at the same time assumes the superiority of white Europeans and the inferiority of American Indians. Locke's version of natural rights theory became the basis of colonial rights discourse.

Swedish botanist Carolus Linnaeus (1707–1778), in his seminal work *Systema Naturae*, classified humans into varieties, or races, based on physical and psychological characteristics. According to his classification, Europeans are "light, active, ingenious"; Asians are "severe, haughty, miserly"; and Africans are "crafty, lazy, negligent … governed by whim." Most Western philosophers accepted Linnaeus's classifications without question.

The Lamarkian theory was also used to support the notion of the perfectibility of humans, which, in turn, justified both colonialization and slavery as a means of assisting "primitive" people in their evolution toward perfection and civilization. This racist worldview was incorporated into the ideals of colonial America. Like Locke, Thomas Jefferson accepted the inequality of hereditary endowment in the different human races. The moral principle of equal respect for all persons was thus drowned out by the racist norms of cultural relativism. It was on the basis of these assumptions that the Europeans continued to exercise their "divine and natural right" to conquer, divide up, and exploit the rest of the world for the next two hundred years.

Modern Marxists link racism to capitalism and class exploitation. The Marxist analysis of racism is problematic in that racism is also found in non-Western, noncapitalist economies such323as the Hindu caste system. On the other hand, racism is inconsistent with Buddhism, which stresses the moral equality of all humans and the cultivation of the virtue of compassion or "true friendliness."

THE ROOTS OF AMERICAN RACISM

Jesse Jackson once said, "America has never come to grips with slavery. It is a hole in the American soul." Although racism is found in many, if not most, cultures, this chapter focuses primarily on racism in the United States.

Racism in the United States is rooted in colonialism, slavery, and the systematic attempted extermination of the American Indians. The first record of African slaves arriving in the American colonies was in Jamestown, Virginia, in 1619. The slave trade was both lucrative and brutal. About 10 to 15 percent of the 13 million slaves sent from Africa died en route to the New World.[3] Although the framers of the Declaration of Independence and the U.S. Constitution briefly considered outlawing the African slave trade (although not slavery itself), the idea was soon dropped because several of them were slaveholders, including Jefferson, who owned hundreds of slaves. The number of white abolitionists in the United States was never large. Most people either supported slavery or were indifferent to it.

During the early 1800s, more than a hundred thousand slaves escaped to northern states or found refuge among the Indians. Frustrated at the Native Americans' refusal to return the runaway slaves, southerners sought help from the federal government to pass laws that would make it easier for them to retrieve runaway slaves. The Fugitive Slave Law of 1850 allowed any black person, even people who had been freed, to be returned to slavery. There was little protest in the North over the law, as even freed blacks were not particularly welcomed and were regarded by the whites as "a dangerous and useless element." Frustrated and angry, the northern blacks, with the help of abolitionist groups such as the Quakers, set up the Underground Railroad that smuggled slaves from the United States over the border to Canada.

In 1857 Dred Scott, a slave who had moved with his master to a free territory, sued for his freedom. The U.S. Supreme Court ruled against Scott, arguing that blacks were strictly property and had no rights. The Court also ruled that the Missouri Compromise, which made the territory free, was unconstitutional because it deprived white people of their right to enjoy their human property.

Institutional racism did not end with the Thirteenth Amendment, however. The Ku Klux Klan (KKK) was formed in 1866 by a group of Tennessee Confederate veterans. They were soon joined by some of the South's leading businessmen and professionals. During the thirty years following the Civil War, the southern states passed "Jim Crow laws" that prevented blacks from owning property in certain areas, allowed employers to hunt down and whip troublesome black workers, and enforced segregation in restaurants, theaters, schools, public transportation, hospitals, and even graveyards.

324

EXCERPTS FROM U.S. SUPREME COURT *BROWN V. BOARD OF EDUCATION OF TOPEKA* (1952)

OPINION: MR. CHIEF JUSTICE WARREN delivered the opinion of the Court.

… Minors of the Negro race, through their legal representatives, seek the aid of the courts in obtaining admission to the public schools of their community on a nonsegregated basis. In each instance, they had been denied admission to schools attended by white children under laws requiring or permitting segregation according to race. This segregation was alleged to deprive the plaintiffs of the equal protection of the laws under the Fourteenth Amendment. In each of the cases … [the] court[s] denied relief to the plaintiffs on the so-called "separate but equal" doctrine announced by this Court in *Plessy v. Ferguson*, 163 U.S. 537. Under that doctrine, equality of treatment is accorded when the races are provided substantially equal facilities, even though these facilities be separate….

The plaintiffs contend that segregated public schools are not "equal" and cannot be made "equal," and that hence they are deprived of the equal protection of the laws….

Today, education is perhaps the most important function of state and local governments…. It is the very foundation of good citizenship. Today it is a principal instrument in awakening the child to cultural values, in preparing him for later professional training, and in helping him to adjust normally to his environment…. These days, it is doubtful that any child may reasonably be expected to succeed in life if he is denied the opportunity of an education. Such an opportunity, where the state has undertaken to provide it, is a right which must be made available to all on equal terms….

To separate [children] from others of similar age and qualifications solely because of their race generates a feeling of inferiority as to their status in the community that may affect their hearts and minds in a way unlikely ever to be undone. The effect of this separation on their educational opportunities was well stated by a finding in the Kansas case by a court which nevertheless felt compelled to rule against the Negro plaintiffs:

Segregation of white and colored children in public schools has a detrimental effect upon the colored children. The impact is greater when it has the sanction of the law; for the policy of separating the races is usually interpreted as denoting the inferiority of the negro group. A sense of inferiority

In 1896 the U.S. Supreme Court ruled in *Plessy v. Ferguson* that "separate but equal" segregation was constitutional. According to the Court, the Fourteenth Amendment, while guaranteeing political equality, does not guarantee social equality. The *Plessy v. Ferguson* ruling provided the legal justification for institutional racism for the next sixty years. (See *Plessy v. Ferguson* reading later in this chapter.) It wasn't until 1954 when the Supreme Court overturned the "separate but equal" ruling in *Brown v. Board of Education* (see box).

During the late nineteenth and early twentieth centuries, tens of thousands of blacks were raped, beaten, and brutally murdered. Unofficial "lynch laws" in the South allowed white mobs to torture and lynch blacks who couldn't be humbled and controlled by the other laws. The lynchings were advertised in the newspapers and became festive family outings for many white southerners. Race riots followed the migration of southern blacks to the northern cities during the early twentieth century. With the increase in blacks living in the North, KKK activities spread northward as well.

During the 1920s, the growing "nativist" sentiment made it almost impossible for anyone but people from northern Europe to immigrate to the United States. Racial hatred and Klan activities expanded their targets to include Jews, Puerto Ricans, southern Europeans, Asians, Mexicans, and Native Americans. By 1924 the KKK had 4 million members. Following the Japanese attack on Pearl Harbor during World War II, thousands of Japanese Americans were removed from their homes and placed in federal internment camps, even though not a single case of sabotage involving Japanese Americans was ever discovered.

Racial segregation continued to be legal in the United States until the 1950s. There were separate professional leagues for black and white athletes. In Hollywood, black actors performed in all-black shows. Although segregated neighborhoods had been ruled unconstitutional by the Supreme Court in 1917, "gentlemen's agreements" among realtors and landlords ensured that neighborhoods—and schools—remained segregated.

In 1954 the U.S. Supreme Court, in *Brown v. Board of Education of Topeka, Kansas*, ruled that school segregation was unconstitutional. The following year Rosa Parks refused to give up her seat on a bus to a white man as required by Alabama law. She was promptly arrested. Her act of nonviolent civil disobedience sparked a citywide bus boycott and the civil rights movement. In 1957 Congress created a Civil Rights Commission, which was followed by the passage of civil rights laws. Martin Luther King Jr. (1929–1968) and Malcolm X (1925–1965) emerged as leaders of the movement. In 1963 Martin Luther King Jr. led the March on Washington.

The "Indian problem" was resolved primarily through genocide. By 1675, only fifty-five years after the Pilgrims landed at Plymouth, the Native Americans of New England, who once numbered in the thousands, were almost exterminated. During the early and mid-1800s, the U.S. government undertook the systematic removal of the Indians from their lands. The Bureau of Indian Affairs was created by Congress in 1824. Instead of being advocates for the Indians, however, the bureau was used to legitimate the takeover of their lands. In 1830 Congress passed the Indian Removal Act. Although the law required the tribes' consent before relocation, many were forced to move without

marked the final step in the conquest of Indians' homelands and their removal to reservations.

The American Indians were not the only group in the West to suffer from the stigma of racism. During the mid-1800s, thousands of Chinese came to the United States to work on the transcontinental railroad. Once the railroad was completed, they were no longer welcome. In 1882 Congress passed the Chinese Exclusion Act, which stopped Chinese immigration and prevented resident Chinese from becoming U.S. citizens. Some of the Chinese returned to China; others sought protection from anti-Chinese violence in segregated areas known as Chinatowns. The Chinese Exclusion Act remained in effect until 1943, when it was repealed by Congress as a gesture of friendship to China during World War II.

Federal initiatives to combat racism and social problems are relatively recent. Under the banner of the Great Society, the Johnson administration in the mid-1960s declared war on poverty. Congress allocated $950 billion for the expansion of existing social services and the establishment of new programs such as Medicare, subsidized housing, and job training to help people break the cycle of poverty.

Following his election in 1980, President Ronald Reagan dismantled much of the Great Society legislation aimed at overcoming the social problems associated with institutional racism. Instead of viewing poverty as a result of institutional racism, the Reagan administration blamed the behavior and values of the poor. The social conditions of people of color began to decline. By the late 1980s, black males were worse off than they were in the late 1960s on almost every socioeconomic measure, including employment rate and life expectancy.[4]

RACISM TODAY

Despite government initiatives to combat racism, 61 percent of Americans, including 82 percent of blacks, interviewed in a 2016 Gallup poll believed that "racism against blacks is widespread in the United States."[5] Since the late 1980s, many of the positive gains of the civil rights era have been reversed. Blacks and whites continue to segregate themselves by race in their everyday decisions about housing, church attendance, and even vacations. Racism also remains a problem on college campuses.[6]

According to the U.S. Census Bureau, blacks earn less that three-quarters of what whites earn. The figure is slightly lower for Hispanics. In addition, about 20 percent of black Americans are living in poverty. Not surprisingly, the life expectancy of blacks in the United States is almost five years shorter than that of whites. Much of this disadvantage is due to racism, including low wages, high unemployment rates among blacks, lack of adequate health care, and inferior schools.

Many schools in the United States are more segregated and unequal today than they were in 1954 at the time of the *Brown v. Board of Education* ruling. According to the Pew Research Center, although high school and college graduation rates have been on the rise, only about half as many blacks and Hispanics, compared to whites, earn college degrees.[7]

Arab Americans are also targets of hate crimes and discrimination. Hate crimes against Arab Americans peaked in 2001, following the New York City Twin Towers attacks. The rates dropped the

has been no change in the rate of reported hate crime victimization in the past decade, although it is estimated that at least half of hate crimes are unreported.[9] According to FBI statistics, more than half of hate crimes are based on race, ethnicity, and national origin.

According to the U.S. Department of Education Statistics, anti-immigrant and race-based hate crimes are the most common on college campuses, followed by those based on sexual orientation.[10] Following the election of Barack Obama, there was an outbreak of racist hate crimes on several college campuses, ranging from racially charged graffiti to effigies of Barack Obama hung from nooses.[11] Obama supports the Hate Crime Prevention Act, which provides federal assistance to states and local jurisdictions to prosecute hate crimes. It was passed by Congress on October 22, 2009, and signed into law by President Obama on October 28, 2009.

Hate crimes are more likely to involve violence than other types of crime. While violent crime in general has been decreasing in the United States, hate crimes have not, meaning that an increasing portion of violent crimes in the United States are motivated by hate.

Racial and Ethnic Profiling

During the late 1990s another type of insidious racism known as racial profiling made the headlines. **Racial profiling** is the routine, and often unconscious, practice by police and other law enforcement agents, such as the FBI and airport security personnel, of targeting suspects on the basis of their race or ethnicity.

Despite efforts to counter this practice, racial profiling is still common. A study found that police are more than twice as likely to search cars driven by minorities.[12] Some people justify this practice by arguing that blacks, Hispanics, and other minorities commit crimes at a higher rate than whites. In fact, contraband items, such as illegal drugs and weapons, are more likely to be found in vehicles driven by white motorists.[13] Studies have also found that black college students are subjected to racial profiling, such as being followed around when shopping.[14]

Individual racism may be more difficult to overcome than institutional racism. When police officers who engage in racial profiling were confronted by their supervisors, the majority of officers had no idea that they were doing it. Some even flatly denied the statistics or that they were racist."[15]

American philosopher and author Michael Levin argues that practices such as racial profiling of African Americans are morally justified because of biological differences between the races.[16] Bernard Boxill, in contrast, supports the **color-blind principle** arguing that color-conscious policies like this violate the principle of distributive justice (see his reading later in this chapter). Opponents of racial profiling point out that it not only hurts its direct targets but also leads to an erosion of trust in the government, especially in the justice system and the police, the very branches of government that are entrusted to protect citizens from injustice.

Affirmative Action

The first affirmative action legislation was passed in 1959. It was expanded in the 1960s during the civil rights era. In 1965 President Lyndon B. Johnson delivered a commencement speech

programs set goals in terms of percentages of minority and female employees. These goals are usually ideals rather than requirements. Quotas, on the other hand, are fixed percentages or numbers set by a company or college for the hiring or admission of minorities and women.

A basic assumption of affirmative action is that positive steps need to be taken to correct certain injustices. Because racism is institutional, affirmative action benefits minorities by breaking the cycle of discrimination and racism. In addition, affirmative action programs bring together people from diverse racial backgrounds, thus creating a more tolerant and multicultural society. This raises the issue of whether undocumented immigrants, since they contribute to diversity because of their special circumstance, should benefit from college affirmative action programs. (See Case Study 4: *Racism, Colonialism, and the Conflict in Darfur*.)

While Gallup polls show that slightly more than half of blacks support it, affirmative action has never enjoyed popular support among whites in the United States presumably because of a belief among whites that blacks in the country already have equal job opportunities with whites. Opponents of affirmative action point out that the most disadvantaged are not in a position to benefit from it. Affirmative action, some argue, also violates the principle of equality and creates resentment, especially among white males who are harmed by reverse discrimination. In 1978 Allan Bakke, a white man, sued the University of California at Davis Medical School because his application was rejected while minorities with lower test scores were admitted. The Supreme Court agreed with Bakke, ruling that reverse discrimination was unconstitutional.

In 1996, with the passage of Proposition 209, California became the first state to ban affirmative action in the public sector. Washington, Texas, Michigan, Florida, and Nebraska have also passed referendums banning affirmative action in college admissions. Despite initial concerns that minorities needed affirmative action programs to make up for past injustices, the enrollment of minorities at the University of California rebounded significantly following the passage of Proposition 209. However, it has since dropped. University of California Los Angeles (UCLA) is making new efforts to boost the number of minority students without using affirmative action.[17]

In June 2003, in *Grutter v. Bollinger*, the U.S. Supreme Court found the admissions policy of the University of Michigan Law School, which awarded points to applicants based on race, to be flawed. However, the Court permitted race to be considered as one among many factors in admissions, stating that the Constitution "does not prohibit the Law School's narrowly tailored use of race in admission decisions to further a compelling interest in obtaining the educational benefits that flow from a diverse student body." In 2016, the Supreme Court ruled in *Fisher v. University of Texas* that affirmative action does not discriminate against whites and is therefore constitutional. These rulings have been hailed as major victories for advocates of affirmative action. (See Case Study 1: *Barbara Grutter v. the University of Michigan Law School*.) Bernard Boxill defends affirmative action and other policies based on race in his reading on "The Color-Blind Principle" at the end of this chapter.

GLOBALIZATION, IMMIGRATION, AND RACISM

exploiting people in poorer nations, most of which were former colonies, for their resources and labor as creating economic opportunities for "developing nations." In particular, the World Trade Organization has been accused of being racist by favoring the interests of wealthy nations and corporations and perpetuating disparities between the affluent and the poorest nations.

Under globalization the disparity between the richest and the poorest has widened, both nationally and internationally. The percentage of earned income going to the top 1 percent has doubled since 1975. In the United States, 1 percent of the population now controls 40 percent of the country's wealth. Black and Hispanic households have been particularly hard hit by the recession. According to the Pew Research Center, the median net worth of Blacks and Hispanics in 2009 dropped to less than half of what it was in 2005, while the median income of whites dropped by less than twenty percent. Income has risen since the recession ended in 2009, and with it the gap between income of white households and black and Hispanic households has shrunk. Still, the gap between the wealth of white and black households remains very large.[18]

While globalization has increased competition and compensation packages for executives at the top, it has driven down the wage of the average American worker as more and more jobs are outsourced to low-paid competitors in countries such as China and India. Thomas Pogge, a professor of International Affairs and Philosophy, in his article "World Poverty and Human Rights," argues that since the affluent nations have contributed to—and continue to contribute to—the conditions that lead to severe poverty in the world, we have a duty to work toward alleviating it.[19]

Globalization has also been accompanied by immigration from poorer to more affluent nations. While drug trafficking and the threat of terrorists sneaking across the border are serious problems, many illegal immigrants are trying to escape lives of abject poverty and hopelessness and provide a better life for their children. According to the Pew Research Center, the number of illegal immigrants living in the United States has increased from 8.5 million in 2000 to a high of 12.2 million in 2007. It has since decreased to 11.3 percent in 2016. About half are from Mexico. In 2006 Congress passed a bill (H.R. 4437) authorizing the construction of a 700-mile militarized wall between Mexico and the United States. The wall was partially built. In 2017 President Trump signed an executive order directing the construction of a border wall along the U.S.-Mexico border. He stated that Mexico would pay for the wall, a claim that Mexican president Enrique Peña Nieto has flatly denied. So far Congress has not funded the building of a wall.

The following year, in attempt to discourage illegal border crossings, Trump adopted a policy of separating the children of these immigrants from their parents, a policy that brought an outcry of protest from U.S. citizens and around the world. Trump reversed his position in the wake of the protests.

330

The Obama administration deported a record number 400,000 illegal immigrants. Despite President Trump's hard line anti-immigrant rhetoric, his administration, in the first few years of his presidency, has actually deported fewer illegal immigrants than Obama did. However, illegal border crossings have also fallen significantly, possibly because of Trump's more hard line approach to illegal

Human Dignity and Individual Moral Worth

Racism involves ill will and a disregard for the dignity and welfare of certain people based on their assigned race. The victims of Hurricane Katrina (2005), mostly poor and black, were left for days without adequate food and water and in unsanitary conditions before FEMA finally took action to assist them. Failure to take their plight as seriously as that of richer, white victims of natural disasters reflects a history of both institutional and individual racism on the part of the government employees and those in power. (See Case Study 2: *Hurricane Katrina and Racism*.) Young children of Hispanic immigrants illegally crossing the border in 2018 were taken from their parents and placed in separate housing, sparking a national outcry.

One of the problems in overcoming institutional racism is how to restore the dignity of groups that have suffered discrimination without violating the equal moral worth of members of groups who have historically benefited from that discrimination. This is particularly an issue in the debate on affirmative action.

Justice and Equality

According to the principle of equality, "it is unjust to treat people differently in ways that deny them significant social benefits unless we can show that there is a difference between them that is relevant to the differential treatment."[21] This principle requires that differential treatment be based only on real and relevant differences. Justice, according to Joel Newman and other advocates of open borders, requires that illegal immigrants receive the same social benefits as citizens when these benefits are based on a moral right to these goods and services.

Michael Levin, on the other hand, argues that discrimination against blacks is justified based on what he claims are real differences between whites and blacks in terms of intelligence and aggressiveness.[22] Others, such as philosopher and novelist Ayn Rand (see Chapter 1), argue that even if it can be shown that members of one race are, on the average, more intelligent or more aggressive than members of another, this tells us nothing about a particular individual. The principle of equality requires that people be judged on their individual merits, not on their membership in a particular group.[23] Others question whether color-conscious programs, such as affirmative action, are necessarily unjust. They maintain that there are times when race, like talent, is relevant in creating public policy.

331

On a global level, some ethicists maintain that wealthy nations have a duty based on justice to work toward alleviating severe poverty in the world. As it stands now, corporations from wealthy nations can take advantage of workers in poorer nations without regard for the labor and environmental laws that protect workers in richer nations. Currently, the international market exists, for the most part, in a "state of nature"—to use Hobbes's term—in which the powerful are free to exploit the weak.

Utilitarian Considerations

students who are poorly qualified academically, thus setting them up for failure. Furthermore, it is argued, strong affirmative action programs waste the talents of those who are most qualified. Defenders of preferential hiring, in response, maintain that it helps minorities who are less qualified because of racism to develop their talents, thus creating a greater pool of qualified workers.

Reparation and Restitution

Restitution is payment made to a group of people for past harms. Restitution is a type of reparation. Blacks, Native Americans, and Japanese Americans have all sought restitution from the U.S. government. In 1988 Congress passed the Civil Liberties Act authorizing the payment of $20,000 to every living Japanese American who was interned in federal camps during World War II. No similar restitution, however, has been offered to blacks or Native Americans.

What do we owe to blacks and Native Americans, if anything, for a legacy of slavery, genocide, and degradation? Is an apology enough? Should the U.S. government return Indian lands or monetarily compensate Native Americans for the loss of their lands? Should descendants of slaves be compensated monetarily, as were the Japanese Americans for their loss of freedom during World War II? Or do we owe only an indirect debt to contemporary blacks, since it was their ancestors, not they, who were brought to this country against their will?

In his controversial anti-reparations ad, David Horowitz argues that the United States does not owe restitution to blacks. (See Chapter 7, Case Study 2: *Brown Students Destroy Offending Newspapers*.) Among his reasons are that blacks who are alive today were not enslaved and that American slavery actually benefited today's African Americans, because they have a much higher standard of living than they would have had if they were living in the African countries from which their ancestors were kidnapped and sold into slavery.[24] Boxill agrees with Horowitz that the argument for compensation to blacks for harm to their slave ancestors is weak. However, Horowitz maintains that blacks living now have a claim for compensation for harms from current injustices.

Care Ethics

The analytical utilitarian approach is often contrasted with a care ethics that emphasizes sentiment and human relationships. Racism prevents the development of caring relationships332between people of different races. Care ethics, however, can also be used to justify paternalistic caring and colonialism.

One of the weaknesses of care ethics is that it does not provide a strategy for overcoming racism in a segregated society. When a commitment to caring is absent, it is our commitment to an ideal or principle that must motivate us to do what is right.

CONCLUSION

Because racism is woven into the very fabric of society and reinforced by personal prejudices, it is difficult to eliminate. We need to carefully examine ways in which society today normalizes racism. The racism of the Jim Crow era seemed normal and rational to the majority of white Americans, just as slavery was once regarded as part of the natural order, at least by those who benefited from it.

Johnson, "To Fulfill These Rights." American justice must include respect for the dignity of all people and equal civil rights for African Americans.

Boxill, "The Color-Blind Principle." Discrimination is not necessarily unjust; difference in color can in some cases be justly considered as a criterion in hiring.

Leahy, "U.S. Senate Resolution 56." The United States should provide refuge to refugees and asylum seekers.

Stephen Cox, "The Fallacy of Open Borders." The bad effects of open immigration far outweigh any benefits.

Joel Newman, "My Favorite Three Arguments for Open Borders." Three arguments for open borders along with counterarguments to an open border policy.

Some people argue that those affected by racist policies should take responsibility for changing the system. The problem of racism, however, is not a "black problem" or a "Hispanic problem"; the problem is white racism. The people who created and maintain racism bear the main responsibility for eradicating it. Those who have the most power to change institutional racism are the very people who have the power to perpetuate it.

Racism needs to be addressed at all levels. Being "tolerant" or "color-blind" is not enough. The majority of whites state that they strongly believe in the ideal of racial equality; but, even though we may not personally feel racial hatred, our actions can be infected by the hatred of others. It is not enough to simply change our own personal attitudes or substitute a politically correct ideology for action. Unless we actively work toward eliminating racism, we are still part of the problem. Martin Luther King Jr. once said that "the choice is ours, and though we might prefer it otherwise, we *must* choose."

333

PLESSY V. FERGUSON.

United States Supreme Court, 1896 (No. 10)

Homer Ferguson (1862–1925), a resident of New Orleans who was one-eighth Negro, made history when he refused to move to the section of a train set apart for Negro passengers, in accordance with the law at the time. His case eventually went to the U.S. Supreme Court. In *Plessy v. Ferguson* (1896), the Supreme Court ruled that segregation was legal, thus establishing the "separate but equal" doctrine which was in effect in the United States until the mid-1950s. In the following reading, Justice Brown defends segregation as Constitutional while Justice Harlan presents the dissenting view.

5. How did Plessy violate the 1890 law?

6. How did Justice Brown respond to the charge that segregated coaches violate the Thirteenth Amendment, which abolished slavery and involuntary servitude, except as a punishment or a crime?

7. How does the Fourteenth Amendment serve to further protect Negros for involuntary servitude, according to the majority ruling?

8. Why, according to the majority ruling, does segregation, including segregated schools, not violate the Fourteenth Amendment?

9. How does Justice Harlan in his dissenting position respond to Justice Brown's claim that the Constitution allows laws to distinguish people based on color?

10.On what grounds does Justice Harlan disagree with the majorities' interpretations of the Thirteenth and Fourteenth Amendments to the Constitution?

11.On what grounds does Harlan argue that this law is unreasonable and inconsistent with the personal liberty of citizens?

MR. JUSTICE HENRY BILLINGS BROWN DELIVERED THE OPINION OF THE COURT

This case turns upon the constitutionality of an act of the general assembly of the state of Louisiana, passed in 1890, providing for separate railway carriages for the white and colored races.

The first section of the statute enacts 'that all railway companies carrying passengers in their coaches in this state, shall provide equal but separate accommodations for the white, and colored races, by providing two or more334passenger coaches for each passenger train, or by dividing the passenger coaches by a partition so as to secure separate accommodations: provided, that this section shall not be construed to apply to street railroads. No person or persons shall be permitted to occupy seats in coaches, other than the ones assigned to them, on account of the race they belong to.'

By the second section it was enacted 'that the officers of such passenger trains shall have power and are hereby required to assign each passenger to the coach or compartment used for the race to which such passenger belongs; any passenger insisting on going into a coach or compartment to which by race he does not belong, shall be liable to a fine of twenty-five dollars, or in lieu thereof to imprisonment for a period of not more than twenty days in the parish prison, and any officer of any railroad insisting on assigning a passenger to a coach or compartment other than the one set aside for the race to which said passenger belongs, shall be liable to a fine of twenty-five dollars, or in lieu thereof to imprisonment for a period of not more than twenty days in the parish prison; and should any passenger refuse to occupy the coach or compartment to which he or she is assigned by the officer of such railway…

The information filed in the criminal district court charged, in substance, that Plessy, being a passenger between two stations within the state of Louisiana, was assigned by officers of the company to the coach used for the race to which he belonged, but he insisted upon going into a

take a seat in another, assigned to persons of the colored race, and, having refused to comply with such demand, he was forcibly ejected, with the aid of a police officer, and imprisoned in the parish jail to answer a charge of having violated the above act.

The constitutionality of this act is attacked upon the ground that it conflicts both with the thirteenth amendment of the constitution, abolishing slavery, and the fourteenth amendment, which prohibits certain restrictive legislation on the part of the states.

1. That it does not conflict with the thirteenth amendment, which abolished slavery and involuntary servitude, except a punishment for crime, is too clear for argument. Slavery implies involuntary servitude,-a state of bondage; the ownership of mankind as a chattel, or, at least, the control of the labor and services of one man for the benefit of another, and the absence of a legal right to the disposal of his own person, property, and services….

So, too, in the Civil Rights Cases, it was said that the act of a mere individual, the owner of an inn, a public conveyance or place of amusement, refusing accommodations to colored people, cannot be justly regarded as imposing any badge of slavery or servitude upon the applicant, but only as involving an ordinary civil injury, properly cognizable by the laws of the state, and presumably subject to redress by those laws until the contrary appears. ‘It would be running the slavery question into the ground,’ said Mr. Justice Bradley, ‘to make it apply to every act of discrimination which a person may see fit to make as to the guests he will entertain, or as to the people he will take into his coach or cab or car, or admit to his concert or theater, or deal with in other matters of intercourse or business.’

A statute which implies merely a legal distinction between the white and colored races-a distinction which is founded in the color of the two races, and which must always exist so long as white men are distinguished from the other race by color-has no tendency to destroy the legal equality of the two races, or re-establish a state of involuntary servitude….

2. By the fourteenth amendment, all persons born or naturalized in the United States, and subject to the jurisdiction thereof, are made citizens of the United States and of the state wherein they reside; and the states are forbidden from making or enforcing any law which shall abridge the privileges or immunities of citizens of the United States, or shall deprive any person of life, liberty, or property without due process of law, or deny to any335person within their jurisdiction the equal protection of the laws….

[The] main purpose [of the Fourteenth Amendment] was to establish the citizenship of the negro, to give definitions of citizenship of the United States and of the states, and to protect from the hostile legislation of the states the privileges and immunities of citizens of the United States, as distinguished from those of citizens of the states. The object of the amendment was undoubtedly to enforce the absolute equality of the two races before the law, but, in the nature of things, it could not have been intended to abolish distinctions based upon color, or to enforce social, as distinguish d from political, equality, or a commingling of the two races upon terms unsatisfactory to either. Laws permitting, and even requiring, their separation, in places where they are liable to be brought into contact, do not necessarily imply the inferiority of either race to the other, and have been generally

Positive rights and privileges are undoubtedly secured by the fourteenth amendment; but they are secured by way of prohibition against state laws and state proceedings affecting those rights and privileges, and by power given to congress to legislate for the purpose of carrying such prohibition into effect; and such legislation must necessarily be predicated upon such supposed state laws or state proceedings, and be directed to the correction of their operation and effect.' …

It is claimed by the plaintiff in error that, in an mixed community, the reputation of belonging to the dominant race, in this instance the white race, is 'property,' in the same sense that a right of action or of inheritance is property. Conceding this to be so, for the purposes of this case, we are unable to see how this statute deprives him of, or in any way affects his right to, such property. If he be a white man, and assigned to a colored coach, he may have his action for damages against the company for being deprived of his so-called 'property.' Upon the other hand, if he be a colored man, and be so assigned, he has been deprived of no property, since he is not lawfully entitled to the reputation of being a white man….

So far, then, as a conflict with the fourteenth amendment is concerned, the case reduces itself to the question whether the statute of Louisiana is a reasonable regulation…. In determining the question of reasonableness, it is at liberty to act with reference to the established usages, customs, and traditions of the people, and with a view to the promotion of their comfort, and the preservation of the public peace and good order. Gauged by this standard, we cannot say that a law which authorizes or even requires the separation of the two races in public conveyances is unreasonable, or more obnoxious to the fourteenth amendment than the acts of congress requiring separate schools for colored children in the District of Columbia, the constitutionality of which does not seem to have been questioned, or the corresponding acts of state legislatures.

We consider the underlying fallacy of the plaintiff's argument to consist in the assumption that the enforced separation of the two races stamps the colored race with a badge of inferiority. If this be so, it is not by reason of anything found in the act, but solely because the colored race chooses to put that construction upon it…. If the two races are to meet upon terms of social equality, it must be the result of natural affinities, a mutual appreciation of each other's merits, and a voluntary consent of individuals…. When the government, therefore, has secured to each of its citizens equal rights before the law, and equal opportunities for improvement and progress, it has accomplished the end for which it was organized, and performed all of the functions respecting social advantages with which it is endowed.' Legislation is powerless to eradicate racial instincts, or to abolish distinctions based upon physical336differences, and the attempt to do so can only result in accentuating the difficulties of the present situation. If the civil and political rights of both races be equal, one cannot be inferior to the other civilly or politically. If one race be inferior to the other socially, the constitution of the United States cannot put them upon the same plane….

The judgment of the court below is therefore affirmed.

MR. JUSTICE MARSHALL HARLAN DISSENTING

By the Louisiana statute the validity of which is here involved, all railway companies (other than street-railroad companies) carry passengers in that state are required to have separate but equal

In respect of civil rights, common to all citizens, the constitution of the United States does not, I think, permit any public authority to know the race of those entitled to be protected in the enjoyment of such rights… Indeed, such legislation as that here in question is inconsistent not only with that equality of rights which pertains to citizenship, national and state, but with the personal liberty enjoyed by everyone within the United States.

The thirteenth amendment does not permit the withholding or the deprivation of any right necessarily inhering in freedom. It not only struck down the institution of slavery as previously existing in the United States, but it prevents the imposition of any burdens or disabilities that constitute badges of slavery or servitude. It decreed universal civil freedom in this country. This court has so adjudged. But, that amendment having been found inadequate to the protection of the rights of those who had been in slavery, it was followed by the fourteenth amendment, which added greatly to the dignity and glory of American citizenship, and to the security of personal liberty … These two amendments, if enforced according to their true intent and meaning, will protect all the civil rights that pertain to freedom and citizenship….

These notable additions to the fundamental law were welcomed by the friends of liberty throughout the world. They removed the race line from our governmental systems. They had, as this court has said, a common purpose, namely, to secure 'to a race recently emancipated, a race that through many generations have been held in slavery, all the civil rights that the superior race enjoy.' They declared, in legal effect, this court has further said, 'that the law in the states shall be the same for the black as for the white; that all persons, whether colored or white, shall stand equal before the laws of the states; and in regard to the colored race, for whose protection the amendment was primarily designed, that no discrimination shall be made against them by law because of their color.' We also said: 'The words of the amendment, it is true, are prohibitory, but they contain a necessary implication of a positive immunity or right, most valuable to the colored race, the right to exemption from unfriendly legislation against them distinctively as colored; exemption from legal discriminations, implying inferiority in civil society, lessening the security of their enjoyment of the rights which others enjoy; and discriminations which are steps towards reducing them to the condition of a subject race….

Everyone knows that the statute in question had its origin in the purpose, not so much to exclude white persons from railroad cars occupied by blacks, as to exclude colored people from coaches occupied by or assigned to white persons. Railroad corporations of Louisiana did not make discrimination among whites in the matter of accommodation for travelers. The thing to accomplish was, under the guise of giving equal accommodation for whites and blacks, to compel the latter to keep to themselves while traveling in railroad … If a white man and a black man choose to occupy the same public conveyance on a public highway, it is their right to do so; and no government, proceeding alone on337grounds of race, can prevent it without infringing the personal liberty of each.

It is one thing for railroad carriers to furnish, or to be required by law to furnish, equal accommodations for all whom they are under a legal duty to carry. It is quite another thing for government to forbid citizens of the white and black races from traveling in the same public

this statute of Louisiana is consistent with the personal liberty of citizens, why may not the state require the separation in railroad coaches of native and naturalized citizens of the United States, or of Protestants and Roman Catholics?

The answer given at the argument to these questions was that regulations of the kind they suggest would be unreasonable, and could not, therefore, stand before the law….

The white race deems itself to be the dominant race in this country. And so it is, in prestige, in achievements, in education, in wealth, and in power. So, I doubt not, it will continue to be for all time, if it remains true to its great heritage, and holds fast to the principles of constitutional liberty. But in view of the constitution, in the eye of the law, there is in this country no superior, dominant, ruling class of citizens. There is no caste here. Our constitution is color-blind, and neither knows nor tolerates classes among citizens. In respect of civil rights, all citizens are equal before the law…. It is therefore to be regretted that this high tribunal, the final expositor of the fundamental law of the land, has reached the conclusion that it is competent for a state to regulate the enjoyment by citizens of their civil rights solely upon the basis of race.

In my opinion, the judgment this day rendered will, in time, prove to be quite as pernicious as the decision made by this tribunal in the Dred Scott Case.

I am of opinion that the state of Louisiana is inconsistent with the personal liberty of citizens, white and black, in that state, and hostile to both the spirit and letter of the constitution of the United States. If laws of like character should be enacted in the several states of the Union, the effect would be in the highest degree mischievous. Slavery, as an institution tolerated by law, would, it is true, have disappeared from our country; but there would remain a power in the states, by sinister legislation, to interfere with the full enjoyment of the blessings of freedom, to regulate civil rights, common to all citizens, upon the basis of race, and to place in a condition of legal inferiority a large body of American citizens, now constituting a part of the political community, Such a system is inconsistent with the guaranty given by the constitution to each state of a republican form of government….

For the reason stated, I am constrained to withhold my assent from the opinion and judgment of the majority.

Discussion Questions

1. Would a “Separate but Equal” policy be morally acceptable if the equality criterion were met? Support your answer. Discuss also how Justice Harlan might answer this question.

2. *Plessy v. Ferguson* was not overturned until almost a century later. In 1955 Rosa Parks, a black woman, refused to give up her seat on a bus to a white man. Like Plessy, she was arrested. Her actions sparked the modern civil rights movement, which brought an end to legal segregation on buses, schools, and other public places. Do you agree with this decision? Why or why not? Discuss how Justice Brown might have responded to Park’s actions had he been alive at the time.338

3. Gender-segregated public schools and classrooms are legal under the U.S. Department of

LYNDON B. JOHNSON

To Fulfill These Rights

Lyndon B. Johnson (1908–1973) served as president of the United States from 1963, following the assassination of President John F. Kennedy, to 1969. During his presidency Johnson was a tireless advocate of civil rights for blacks. Legislation passed under Johnson's administration included the 1964 Civil Rights Act. Following are excerpts from his commencement address delivered at Howard University on June 4, 1965.

Critical Reading Questions

1. According to Johnson, in what ways have American Negroes been another nation?

2. Why isn't freedom enough to bring equal opportunity to the American Negro?

3. What does Johnson mean when he says that "ability is not just the product of birth"?

4. What are some of the causes of inequality?

5. What is the difference between white poverty and Negro poverty?

6. What are the roots of the injustice experienced by the American Negro?

7. What, according to Johnson, is the answer to these problems?

8. What does Johnson mean when he says that "American justice is a very special thing" and what does this mean for the American Negro?

"To Fulfill These Rights," *Public Papers of the Presidents of the United States: Lyndon B. Johnson, 1965*, vol. 2, no. 301 (Washington, D.C.: Government Printing Office, 1966), 635–640.

*"Sex-Segregated Schools: Separate and Unequal," https://www.acla.org/sex-segregated-schools-searate-but-unequal.

†Jeremy B. White, "Trump's Decision to End Protections for Haiti and El Salvador Immigrants is Racially Motivated, Claims Lawsuit," February 22, 2018, www.independent.co.uk/news/world/Americas.

339

COMMENCEMENT ADDRESS AT HOWARD UNIVERSITY, JUNE 4, 1965

… In far too many ways American Negroes have been another nation: deprived of freedom, crippled by hatred, the doors of opportunity closed to hope.

But freedom is not enough. You do not wipe away the scars of centuries by saying: Now you are free to go where you want, and do as you desire, and choose the leaders you please.

You do not take a person who, for years, has been hobbled by chains and liberate him, bring him up to the starting line of a race and then say, "you are free to compete with all the others," and still justly believe that you have been completely fair.

Thus it is not enough just to open the gates of opportunity. All our citizens must have the ability to walk through those gates.

This is the next and the more profound stage of the battle for civil rights. We seek not just freedom but opportunity. We seek not just legal equity but human ability, not just equality as a right and a theory but equality as a fact and equality as a result.

For the task is to give 20 million Negroes the same chance as every other American to learn and grow, to work and share in society, to develop their abilities—physical, mental and spiritual, and to pursue their individual happiness.

To this end equal opportunity is essential, but not enough. Men and women of all races are born with the same range of abilities. But ability is not just the product of birth. Ability is stretched or stunted by the family that you live with, and the neighborhood you live in—by the school you go to and the poverty or the richness of your surroundings. It is the product of a hundred unseen forces playing upon the little infant, the child, and finally the man….

For the great majority of Negro Americans—the poor, the unemployed, the uprooted, and the dispossessed—there is a much grimmer story. They still, as we meet here tonight, are another nation. Despite the court orders and the laws, despite the legislative victories and the speeches, for them the walls are rising and the gulf is widening….

We are not completely sure why this is. We know the causes are complex and subtle. But we do know the two broad basic reasons. And we do know that we have to act.

First, Negroes are trapped—as many whites are trapped—in inherited, gateless poverty. They lack training and skills. They are shut in, in slums, without decent medical care. Private and public poverty combine to cripple their capacities.

We are trying to attack these evils through our poverty program, through our education program, through our medical care and our other health programs, and a dozen more of the Great Society programs that are aimed at the root causes of this poverty.

340

We will increase, and we will accelerate, and we will broaden this attack in years to come until this most enduring of foes finally yields to our unyielding will.

But there is a second cause—much more difficult to explain, more deeply grounded, more desperate in its force. It is the devastating heritage of long years of slavery; and a century of oppression, hatred, and injustice.

Men are shaped by their world. When it is a world of decay, ringed by an invisible wall, when escape is arduous and uncertain, and the saving pressures of a more hopeful society are unknown, it can cripple the youth and it can desolate the men.

There is also the burden that a dark skin can add to the search for a productive place in our society. Unemployment strikes most swiftly and broadly at the Negro, and this burden erodes hope. Blighted hope breeds despair. Despair brings indifferences to the learning which offers a way out. And despair, coupled with indifferences, is often the source of destructive rebellion against the fabric of society.

There is also the lacerating hurt of early collision with white hatred or prejudice, distaste or condescension. Other groups have felt similar intolerance. But success and achievement could wipe it away. They do not change the color of a man's skin. I have seen this uncomprehending pain in the eyes of the little, young Mexican-American schoolchildren that I taught many years ago. But it can be overcome. But, for many, the wounds are always open.

Perhaps most important—its influence radiating to every part of life—is the breakdown of the Negro family structure. For this, most of all, white America must accept responsibility. It flows from centuries of oppression and persecution of the Negro man. It flows from the long years of degradation and discrimination, which have attacked his dignity and assaulted his ability to produce for his family….

There is no single easy answer to all of these problems.

Jobs are part of the answer. They bring the income which permits a man to provide for his family.

Decent homes in decent surroundings and a chance to learn—an equal chance to learn—are part of the answer.

Welfare and social programs better designed to hold families together are part of the answer.

Care for the sick is part of the answer.

An understanding heart by all Americans is another big part of the answer…. American justice is a very special thing. For, from the first, this has been a land of towering expectations. It was to be a nation where each man could be ruled by the common consent of all—enshrined in law, given life by institutions, guided by men themselves subject to its rule. And all—all of every station and origin—would be touched equally in obligation and in liberty.

Beyond the law lay the land. It was a rich land, glowing with more abundant promise than man had ever seen. Here, unlike any place yet known, all were to share the harvest.

And beyond this was the dignity of man. Each could become whatever his qualities of mind and spirit would permit—to strive, to seek, and, if he could, to find his happiness.

This is American justice. We have pursued it faithfully to the edge of our imperfections, and we have failed to find it for the American Negro.

2. If Johnson were still president, discuss how he would most likely approach immigrants crossing the Mexican border into the United States illegally. How would he respond to Jeff Sessions making illegal immigration a federal crime, given that many Americans believe Sessions's decision was motivated by racism toward Hispanics?

3. Discuss how Johnson would most likely respond to both the *Bakke* and the University of Michigan Law School Supreme Court cases.

BERNARD R. BOXILL

The Color-Blind Principle

Bernard Boxill is a philosophy professor at the University of North Carolina in Chapel Hill. Boxill rejects the assumption that law and morality should always be color-blind. Whereas some color-conscious policies, such as Jim Crow laws, are clearly unjust, there are other times, he argues, when it is morally justified to base public policy on color-conscious principles.

Critical Reading Questions

1. Who was Homer Plessy and why was he arrested in 1892? What was the U.S. Supreme Court ruling in the *Plessy* case?

2. What did Justice Harlan mean when he said, "Our Constitution is color-blind"?

3. What are the main arguments used by advocates of the color-blind principle?

4. What is the difference between the racist's and the black nationalist's views on the importance of color?

5. What is the "responsibility criterion" and why does Boxill claim that this can be a false and confusing criterion for creating egalitarian public policies?

6. Why does racial discrimination subordinate the best interests of minority communities?

7. According to Boxill, why are color-conscious principles no less discriminatory than the principles of meritocracy?

8. On what grounds does Boxill argue that "adopting a color-blind principle entails adopting a talent-blind principle"?

9. How does Boxill respond to the objection that affirmative action leads to reverse discrimination against whites?

Bernard R. Boxill, "The Color-Blind Principle" from *Blacks and Social Justice*. Copyright © 1984 by

Part of Plessy's defense, though it must be considered mainly a snare for the opposition, was that he was "seven-eighths Caucasian and one-eighth African blood," and that the "mixture of colored blood was not discernible in him." The bulwark of his argument was, however, that he was "entitled to every right, privilege and immunity secured to citizens of the white race," and that the law violated the Fourteenth Amendment's prohibition against unequal protection of the laws. Cannily, the court refused the snare. Perhaps it feared—and with reason—that the ancestry of too many white Louisianans held dark secrets. But it attacked boldly enough Plessy's main argument that the Louisiana law was unconstitutional. That argument, Justice Henry Billings Brown wrote for the majority, was unsound. "Its underlying fallacy," he averred, was its "assumption that the enforced separation of the two races stamps the colored race with a badge of inferiority." "If this be so," Brown concluded, "it is not by reason of anything found in the act, but solely because the colored race chooses to put that construction upon it."

Only one judge dissented from the court majority—Justice John Marshall Harlan. It was the occasion on which he pronounced his famous maxim: "Our Constitution is color-blind." In opposition to Justice Brown, Justice Harlan found that the "separation of citizens on the basis of race [was a] badge of servitude … wholly inconsistent [with] equality before the law."

Plessy's is the kind of case which makes the color-blind principle seem indubitably right as a basis for action and policy, and its contemporary opponents appear unprincipled, motivated by expediency, and opportunistic. This impression is only strengthened by a reading of Justice Brown's tortuously preposterous defense of the "equal but separate" doctrine. It should make every advocate of color-conscious policy wary of the power of arguments of expediency to beguile moral sense and subvert logic. Yet I argue that color-conscious policy can still be justified. The belief that it cannot is the result of a mistaken generalization from *Plessy*. There is no warrant for the idea that the color-blind principle should hold in some general and absolute way.

"I DIDN'T NOTICE" LIBERALS

In his book *Second Wind*, Bill Russell recalls how amazed he used to be by the behavior of what he called "I didn't notice" liberals. These were individuals who claimed not to notice people's color. If they mentioned someone Russell could not place, and Russell asked whether she was black or white, they would answer, "I didn't notice." "Sweet and innocent," Russell recalls, "sometimes a little proud." Now, the kind of color-blindness the "I didn't notice" liberals claim to have may be a worthy ideal … but it is absolutely different from the color-blind principle which functions as a basis for policy….

COLOR-BLIND AND COLOR-CONSCIOUS POLICIES

The essential thing about a color-conscious policy is that it is designed to treat people differently because of their race. But there are many different kinds of color-conscious policies. Some, for example the Jim Crow policies now in the main abolished, aim to subordinate blacks, while others, such as busing and preferential treatment, aim at elevating blacks.

Some color-conscious policies explicitly state that persons should be treated differently because of

awareness of each other's color, and exacerbate racial conflict. They maintain that only if the law, with all its weight and influence, sets the example of color-blindness, can there be a realistic hope that people will see through the superficial distinctions of color and become themselves color-blind.

But this argument is not the main thesis of the advocates of legal color-blindness. Generally, they eschew it because of its dependency on the empirical. Their favorite argument, one that is more direct and intuitively appealing, is simply that it is wicked, unfair, and unreasonable to penalize a person for what he cannot help being. Not only does this seem undeniably true, but it can be immediately applied to the issue of race. No one can help being white or being black, and so it seems to follow that it is wicked, unfair, and unreasonable to disqualify a person from any consideration just because he is white or black. This, the advocates of color-blindness declare, is what made Jim Crow laws heinous, and it is what makes affirmative action just as heinous.

The force of this consideration is enhanced because it seems to account for one peculiar harmfulness of racial discrimination—its effect on self-respect and self-esteem. For racial discrimination makes some black people hate their color, and succeeds in doing so because color cannot be changed. Furthermore, a racially conscious society has made color seem an important part of the individual's very essence, and since color is immutable it is easily susceptible to this approach. As a result, the black individual may come, in the end, to hate even himself…. The black nationalist agrees with the racists' view that his color is an important and integral part of his self, but affirms, in opposition to the racists, that it has value. This strategy, which is exemplified by the slogans "black is beautiful" and "black and proud," has the obvious advantage of stimulating pride and self-confidence. Nevertheless, it is no panacea. For one thing, it has to contend with the powerful propaganda stating that black is *not* beautiful. And there is a more subtle problem. Since the black cannot choose *not* to be black, he cannot be altogether confident that he would choose to *be* black, nor, consequently, does he really place a special value in being black. Thus, some people, black and white, have expressed the suspicion that the slogan "black is beautiful" rings hollow, like the words of the man who protests too loudly that he loves the chains he cannot escape. In this respect the black who can pass as white has an advantage over the black who cannot. For, though he cannot choose not to be black, he can choose not to be *known* to be black.

THE RESPONSIBILITY CRITERION

A final argument in favor of legal color-blindness is related to, and further develops, the point that people do not choose to be, and cannot avoid being, black or white. This links the question of color-blindness to the protean idea of individual responsibility…. Since this argument requires that people be treated differently in ways which profoundly affect their lives only on the basis of features for which they are responsible, I call it the responsibility criterion.

The responsibility criterion also seems to make the principle of color-blindness follow from principles of equal opportunity. Joel Feinberg takes it to be equivalent to the claim that "properties can be the grounds of just discrimination between persons only if those persons had a fair opportunity to acquire or avoid them."[1] This implies that to discriminate between persons on the basis of a feature for which they can have no responsibility is to violate the principle of fair opportunity….

But however loosely it is interpreted, the responsibility criterion cannot be adduced in support of all reasons behind color-conscious policies. It cannot, for344example, sustain the following argument, sketched by Ronald Dworkin, for preferential admission of blacks to medical school. "If quick hands count as 'merit' in the case of a prospective surgeon this is because quick hands will enable him to serve the public better and for no other reason. If a black skin will, as a matter of regrettable fact, enable another doctor to do a different medical job better, then that black skin is by the same token 'merit' as well."[2] What is proposed here is not that a black skin is a justifiable basis of discrimination because it is a reliable sign of merit or some other factor Q. A closely related argument does make such a proposal, viz., that blacks should be preferentially admitted to medical school because being black is a reliable sign of a desire to serve the black community. But this is not the argument that Dworkin poses. In the example quoted above what he suggests is that being black is in *itself* merit, or, at least, something very like merit.

According to the responsibility criterion, we ought not to give A a job in surgery rather than B, if A is a better surgeon than B only because he was born with quicker hands. For if we do, we treat A and B "differently in ways that profoundly affect their lives because of differences for which they have no responsibility." This is the kind of result which puts egalitarianism in disrepute. It entails the idea that we might be required to let fumblers do surgery and in general give jobs and offices to incompetents, and this is surely intolerable. But, as I plan to show, true egalitarianism has no such consequences. They are the result of applying the responsibility criterion, not egalitarian principles. Indeed, egalitarianism must scout the responsibility criterion as false and confused.

Egalitarians should notice first, that, while it invalidates the merit-based theories of distribution that they oppose, it also invalidates the need-based theories of distribution they favor. For, if people are born with special talents for which they are not responsible, they are also born with special needs for which they are not responsible….

At this point there may be objections. First, that the responsibility criterion was intended to govern only the distribution of income, not jobs and offices—in Feinberg's discussion, for example, this is made explicit. Second, that it does not mean that people should not be treated differently because of differences, good or bad, which they cannot help, but rather that people should not get less just because they are born without the qualities their society prizes or finds useful…. Qualified in these ways, the responsibility criterion becomes more plausible. It no longer implies, for example, that fumblers should be allowed to practice surgery, or that the blind be treated just like the sighted. But with these qualifications it also becomes almost irrelevant to the color-blind issue. For that issue is not only about how income should be distributed. It is also about how jobs and offices should be distributed.

Most jobs and offices are distributed to people in order to produce goods and services to a larger public. To that end, the responsibility criterion is irrelevant. For example, the purpose of admitting people to medical schools and law schools is to provide the community with good medical and legal service. It does not matter whether those who provide them are responsible for having the skills by virtue of which they provide the goods, or whether the positions they occupy are "goods" to them. No just society makes a person a surgeon just because he is responsible for his skills or because

provide good legal or medical service to black people who would otherwise not have access to it, or avail themselves of it, it is difficult to see how there can be a principled objection to admissions policies which prefer people with black skins—though, again, they are not responsible for the quality by virtue of which they are preferred.

345

JUSTICE AND THE RESPONSIBILITY CRITERION

A further point needs to be made in order to vindicate color-conscious policies. The principles of justice are distributive: Justice is concerned not only with increasing the total amount of a good a society enjoys, but also with how that good should be distributed among individuals. Generally, judicial principles dictate that people who are similar in ways deemed relevant to the issue of justice, such as in needs or rights, should get equal amounts of a good, and people who are dissimilar in these regards should get unequal amounts of the good. In terms of these principles certain laws and rules must be considered unjust which would not otherwise be thought unjust. Consider, for example, a policy for admitting persons to medical school which resulted in better and better medical service for white people, but worse and worse medical service for black people. This policy would be unjust, however great the medical expertise—certainly a good—it produced, unless color is relevant to the receiving of good medical attention.

… The point is that if black clients tend to trust and confide more in black lawyers and doctors, then color—functioning as merit—enables a good to be produced and distributed according to some principle of justice.

If these considerations are sound, then the responsibility criterion thoroughly misconstrues the reasons for which racial discrimination is unjust. Racial discrimination against blacks is unjust because it does not enable goods to be produced and distributed according to principles of justice. It is not unjust because black people do not choose to be black, cannot *not* be black, or are not responsible for being black. This is completely irrelevant…. [E]ven if black people could choose to become white, or could all easily pass as white, a law school or medical school that excluded blacks because they were black would still act unjustly. Nothing would have changed.

The arguments in support of color-blindness tend to make the harmfulness of discrimination depend on the difficulty of avoiding it. This is misleading. It diverts attention from the potential harmfulness of discrimination that *can* be avoided and brings the specious responsibility criterion into play. Suppose again, for example, that a person is denied admission to law school because he parts his hair on the right side. Though he, far more easily than the black person, can avoid being unfairly discriminated *against*, he does not thereby more easily avoid being the object, indeed, in a deeper sense, the victim, of unfair discrimination. If he parts his hair on the left side he will presumably be admitted to law school. But then he will have knowingly complied with a foolish and unjust rule and this may well make him expedient and servile. Of course, he will not be harmed to the same extent and in the same way as the victim of racial discrimination. For example, he probably will not hate himself. Unlike color, the cause of his ill-treatment is too easily changed for him to conceive of it as essential to himself. Moreover, if he chooses to keep his hair parted on the right side and thus to

no attack on his self-respect. Racial discrimination, however, undermines its victims' self-respect through their awareness that they are considered morally inferior. The fact that racial discrimination, or any color-conscious policy, is difficult to avoid through personal choice merely adds to its basic harmfulness if it is in the first place unjust, but is not the *reason* for its being unjust.

It remains to consider Feinberg's claim that if people are discriminated for or against on the basis of factors for which they are not responsible the equal opportunity principle is contravened. This I concede. In particular, I concede that color-conscious policies giving preference to blacks place an insurmountable obstacle in the path of whites, and since such obstacles reduce346opportunities, such policies may make opportunities unequal. But this gives no advantage to the advocates of color-blind policies. For giving preference to the competent has exactly the same implications as giving preference to blacks. It, too, places obstacles in the paths of some people, this time the untalented, and just as surely makes opportunities unequal. Consequently, an advocate of color-blindness cannot consistently oppose color-conscious policies on the grounds that they contravene equal opportunity and at the same time support talent-conscious policies. Nor, finally, does my concession raise any further difficulty with the issue of equal opportunity. As I argue later, equal opportunity is not a fundamental principle of justice, but is derived from its basic principles. Often these basic principles require that opportunities be made more equal. Invariably, however, these same principles require that the process of equalization stop before a condition of perfect equality of opportunity is reached.

To conclude, adopting a color-blind principle entails adopting a talent-blind principle, and since the latter is absurd, so also is the former. Or, in other words, differences in talent, and differences in color, are, from the point of view of justice, on a par. Either, with equal propriety, can be the basis of a just discrimination. Consequently, the color-blind principle is not as simple, straightforward, or self-evident as many of its advocates seem to feel it is. Color-conscious policies can conceivably be just, just as talent-conscious policies can conceivably be—and often are—just. It depends on the circumstances.

NOTES

1. Joel Feinberg, *Social Philosophy* (Englewood Cliffs, N.J.: Prentice Hall, 1973), 49.

2. Ronald Dworkin, "Why Bakke Has No Case," *New York Review of Books*, 10 Nov. 1977, 14.

Discussion Questions

1. Philosopher Lisa Newton opposes affirmative action.[25] She argues that affirmative action violates the moral ideal of equality and, consequently, entails reverse discrimination, which is unjust. Discuss how Boxill might respond to Newton.

2. Discuss what Boxill would most likely think of the current trend to create minority curriculums in colleges.

3. Alan Bloom in *The Closing of the American Mind* (1987) writes: "The black [college] student who wishes to be just a student and to avoid allegiance to the black group has to pay a terrific price,

5. When philosopher Michael Levin tried to find a publisher for his manuscript *Why Race Matters: Race Differences and Their Implications*, dozen of publishers rejected it, including several academic publishers. Other authors, who have attempted to publish "politically incorrect" views on race differences, such as Arthur Jensen, have met similar obstacles in finding publishers. Does freedom of the press give publishers the right to choose not to publish material they find objectionable? What is the relationship, if any, between freedom of the press and the perpetuation of institutional racism? Support your answers.

347

SENATOR PATRICK LEAHY

S. RES. 56: A Resolution That the United States Should Remain a Global Leader in Welcoming and Providing Refuge to Refugees and Asylum Seekers.

Senator Patrick Leahy has served as U.S. Senator from Vermont since 1975. He is the former chair of the Senate Judiciary Committee and is currently the ranking member of the Appropriations Committee. He is a staunch advocate of comprehensive immigration reform and a more open immigration policy. He also supports Vermont communities that help vulnerable refugees fleeing violence in their native countries. In the following resolution, Leahy argues that United States should provide refuge to refugees and asylum seekers.

Critical Reading Questions

1. What groups of people does Leahy say should be welcomed as immigrants in the United States?

2. Why are these refugees fleeing their countries?

3. What effect have refugees and asylum seekers had on their communities in the United States?

4. Why does the United States have a moral obligation to provide refuge for people fleeing violence and persecution?

5. What would the effect be of placing a ban on resettlement?

IN THE SENATE OF THE UNITED STATES February 7 (legislative day, February 6), 2017

Mr. Leahy (for himself, Mrs. Shaheen, Ms. Hirono, Mr. Booker, Mr. Reed, Mr. Carper, Ms. Warren, Mr. Sanders, Mr. Coons, Mr. Van Hollen, Mrs. Gillibrand, Mr. Merkley, Mr. Blumenthal, Mr. Udall, Mr. Markey, Mr. Wyden, Mr. Bennet, Ms. Klobuchar, Mr. Franken, Mr. Brown, Mr. Murphy, Mr. Whitehouse, Mr. Schatz, Ms. Heitkamp, Mr. Donnelly, Mr. Heinrich, Mrs. Feinstein, Mr. Durbin, Mr. Casey, Mr. Peters, and Mr. Schumer) submitted the following resolution; which was referred to the Committee on the Judiciary

sexual orientation, gender identity, or gender.

Whereas the United States is a country founded on the principles of religious and political freedom;

Whereas hateful rhetoric against refugees and asylum seekers betrays the principles on which the United States was founded;

Whereas for centuries, people from around the world have sought refuge in the United States in pursuit of freedom and protection for themselves and their families;

Whereas people often seek refuge and asylum in the United States to flee war, armed conflict, violence, and religious, ethnic, and political persecution;

Whereas refugees and asylum seekers have been welcomed by towns, cities, and States across the United States;

Whereas refugees and asylum seekers have made their new communities stronger and more vibrant and have positively contributed to the betterment of the United States;

Whereas the United States has a moral obligation to ensure that people fleeing violence and persecution are protected;

Whereas the United States Senate should continue its legacy of bipartisan leadership on refugees and asylum seekers;

Whereas a ban or halt on resettlement may result in prolonged and indefinite family separation;

Whereas executive actions targeting refugees and asylum seekers could place these most vulnerable populations at serious risk of death or injury; and

Whereas refugees are the most thoroughly screened and vetted entrants to the United States, undergoing multiple security checks by the Department of Defense, the Department of Homeland Security, the Department of State, the Federal Bureau of Investigation, and the National Counterterrorism Center: Now, therefore, be it

That—

(1) it is the sense of the Senate that—

(A) the United States should remain a global leader in welcoming and providing refuge to refugees and asylum seekers; and

(B) no person should be banned from entering the United States because of their nationality, race, ethnicity, religion, sexual orientation, gender identity, or gender;

(2) the Executive order titled Protecting the Nation From Foreign Terrorist Entry Into the United States issued by the President on January 27, 2017, undermines the national interest of the United States; and

(3) the Senate directs the Secretary of the Senate to transmit an enrolled copy of this resolution to

border."* To what extent do the parents bear the burden of blame for putting their children in such a precarious position? Discuss also how Leahy might respond to Sessions.

2. Leahy writes that "hateful rhetoric against refugees and asylum seekers betrays the principles on which the United States was founded." However, the dialogue, or lack thereof, between Americans who support giving asylum seekers refuge and those who oppose it has become349hateful and even violent at times. Do restaurants and other public places, such as college campuses, have a right to harass and even remove people whose views they disagree with, as happened to White House press secretary Sarah Sanders at a restaurant during the summer of 2018? Support your answer.

3. Does tradition create a moral obligation to continue that tradition? Critically analyze Leahy's argument that Americans have a moral obligation to ensure that people fleeing violence and persecution are protected based on our legacy of leadership in taking in refugees and asylum seekers.

*Jeff Sessions, "Parents and Children Illegally Crossing the Border Will Be Separated," *Time*, May 7, 2018, http://time.com/5268572/jeff-sessions-illegal-border-separated/.

STEPHEN COX

The Fallacy of Open Immigration

Stephen Cox is editor of *Liberty* and a Professor of Literature at the University of California, San Diego. In the following reading, Cox argues that bad effects of open immigration vastly outnumber its good effects. He also disagrees that anyone has a right to claim membership in a body politic or country simply by moving into it.

Critical Reading Questions

1. Why does Cox reject the idea that if everybody does what they believe is right nothing but good can possibly result?

2. How does Cox respond to the argument in favor of open borders that unskilled foreign workers work hard and contribute vastly more to the American economy than they cost?

3. What groups of potential immigrants do most open border people neglect to take into account?

4. How does Cox respond to the argument that people have a "right to immigrate"?

5. What is the difference between "right to emigrate" and a "right to immigrate"?

6. What does Cox mean when he says, "An essentially libertarian political system must be supported by essentially libertarian cultural assumptions," and how should this impact our immigration system?

Libertarians have always been skeptical about that assumption. They know, for example, that wars have always been fought for causes believed to be right. The vast fabric of the modern welfare state was created to ensure proper care for the poor and needy. Yet very terrible things have resulted from the impulse to assert the right through warfare and to create the right through social engineering. This, more than anything else, has caused thinking men and women to look for ways of limiting, rather than increasing, the power of the state and, with it, the bad effects of good intentions.

But libertarians themselves have not always succeeded in resisting the allure of good intentions, the assumption that there will be no unfortunate consequences of our good ideas. The best example I know is the attempt by some libertarians (not a majority, but a sizable and vocal minority) to ignore any bad effects that may result from open immigration—a policy that they favor on moral grounds, considering it an obvious expression of our faith in individual liberty. Many libertarians who speak and write about this issue scorn the view that immigration could be anything other than a stimulation to the economy and a vindication of universal human rights.

I deny that it is either one. I believe that under current circumstances the bad effects of open, or even large-scale, immigration vastly outnumber its good effects. Further, I dispute the proposition that anyone has a right to claim membership in a body politic simply by moving into the space it occupies.

I'm going to outline my reasons. But first I want to observe that there are certain debates in which practically nobody, on either side, can conceive of any sincere opposition to his or her own views. Immigration is one of those debates. Opponents of open borders are routinely amazed and angered to discover the existence of arguments against their view. Proponents of open borders react in the same way. Neither group shows any remarkable ability to focus on what the other group is saying. Both prefer to restate their own opinions and call their opponents names.

The name that supporters of open immigration most frequently call their opponents is "racist"—as if every country that has more restrictive immigration laws than the United States (and almost all of them do) were manifestly "racist" in its intentions. If you are a supporter of open immigration, I can't demand that you keep your temper and refrain from calling me a word like that. But I hope you do. Then maybe something like a real discussion can emerge.

LET'S TALK ECONOMICS

Libertarian arguments for open borders fall into two groups: economic and moral. I'll consider the economic arguments first, despite the fact that they almost always function as supplements to the underlying moral arguments.

Few people want to keep foreign doctors, engineers, computer scientists, and financial magnates out of the United States. Most of the economic arguments for immigration are therefore defenses of immigration by poor and unskilled persons. Proponents of open borders insist that unskilled foreign workers contribute vastly more to the American economy than they cost, resting their case on the idea that "immigrants work hard and create wealth." Some also point out that a large supply of

compete for the same jobs, join the same labor unions, and be subject to the same labor laws and the same rates of taxation as everybody else. In short, their wages would rise, and there would no longer be any work that "Americans won't do."

351

It is true, of course, that the existence of a large and growing supply of unskilled workers tends to reduce prices—especially the price of lawn mowing, Tyson's chicken, and certain kinds of fruits and vegetables. But if you think that the more unskilled laborers we have, the larger and more dynamic the economy will be, you have a strange idea about the production of wealth. When I have my car washed, some of the work is done by unskilled labor, but as much as possible is done by machines. If more human squirters and swabbers were available, I'm sure that the price of their labor would go down, and at some point the machines would be completely replaced by muscles. The same might be said about, say, the sweeping of streets or the growing of crops. I don't believe, however, that a low-wage, labor-intensive economy is preferable in any way to a machine economy, paying high wages to well-educated people. If you believe that it is, you belong in the pre-industrial age.

Recently the mayor of Los Angeles, trying to speak to America on behalf of all Mexicans immigrants, shouted triumphantly to a rally of open-immigration supporters: "We [sic] cook your food! We [sic] clean your toilets!" People like the mayor are the last supporters of the labor theory of value. They think that wealth results automatically from toil. It doesn't. And great increases in wealth never do. They result from the kind of work that is done by people who are highly skilled and, ordinarily, highly paid. Our immigration policy should target the entrepreneurs, the professionals, the wealth producers, and make it easy for them to come to America—supposing, as I do, that doctors and software engineers do something more for the economy than the guys behind the counter of the local 7-11.

Do we have to choose the kind of workers who should be invited in? Yes, we do. I will return to that theme. Before doing so, I want to examine another issue that proponents of open borders usually don't want to think about: the *net* contributions of unskilled laborers to the *actual* American economy. Despite all the talk about the economic contributions of unskilled labor, few unskilled immigrants contribute anything equal to what they extract from the unwilling taxpayer.

I'm not saying this simply because illegal immigrants generally avoid paying income taxes. Imagine an unskilled laborer who has come here legally, just as proponents of open borders wish that all unskilled laborers could do. Let's say he makes $15,000 a year—an income that is above the minimum wage, an income that is quite good enough to draw millions of people here from almost anywhere in the world, provided we had open borders. And let's say that his wife works too (part time, because of the kids) and makes $10,000 a year. That $25,000 is the value they contribute to the American economy. Out of it, they pay maybe $1200 in sales taxes, $500 in the property taxes that are included in their rent, $1900 in Social Security payments, and zip in income taxes. (Whatever income taxes are extracted from their checks, they get back in refunds. Actually, because of tax subsidies to poor people, they will probably get back a good deal more than they pay in, but to be extra-fair I won't pause to calculate that.)

taxpayers. Whenever the couple have a child, that's $10,000 at the county hospital. Afterwards, it's probably $5000 a year for a government-financed preschool, then $10,000 a year (the approximate national average) in government funds for K-12 education.

Let's not even think about the public bills for their children's college education. Or—to look at the other side of the coin—for the social problems of a population in which relatively few people qualify for a college education. Some of those problems were pointed out by Heather Mac Donald in an article in the Summer 2006 *City Journal*. She noted that in 2002 half the Hispanic children born in the United States were born out of wedlock. Further, "the illegitimacy rate in Mexico is 38 percent; in El Salvador, it is 72 percent." Immigration from these countries currently seems to select for "social choices" that are detrimental to society.

But to return. Suppose that our unskilled couple has three children. This family is putting $25,000 into the352economy, taking $30,000 out of it, *just for K-12 education* ($54,000, if they live in Los Angeles), and paying only about $3,600 in taxes. Oh, but there are other things. Dwellers in the city of Los Angeles sop up about $2,500 per year per capita in city and county expenditures for … this and that. Now the five-member family, if located in Los Angeles or some other large city, is putting $25,000 into the economy, and extracting $38,900: $30,000, plus $12,500—and more, much more, that I haven't tried to quantify—minus the family's own tax contribution of $3,600.

I haven't even mentioned the cost of new highways, airports, and rapid transit, or anything else constructed by state and federal governments to minister to America's burgeoning population. Shall I add the increased cost of car insurance resulting from an influx of people who are too poor to buy it for themselves? Or the increasing expenditures for security guards and other crime-protection devices in neighborhoods inundated by unskilled, unassimilated poor folk? Or the rising costs of homes in the places to which former residents of those neighborhoods flee? Or the increased costs of controlling the formerly obscure diseases now coursing across our frontiers from every economically backward area of the world?

But the best part is yet to come. Poor people, and ethnically self-identified recent immigrants, vote overwhelmingly for modern-liberal candidates, and modern-liberal candidates, once elected, take as the whole duty of life the effort to raise taxes and expand government programs and entitlements. They seek to bless their constituency with affirmative action programs, ethnic quotas, foreign-language maintenance programs, socialist and race-conscious school curricula, and every other modern-liberal institution that has any potential for transforming the United States into the Canadian or Mexican version of a progressive country.

The expectation of political support explains why modern-liberal politicians are such vigorous proponents of immigration, why they are, even now, trying to enlist illegal immigrants in the electoral process (see Cox, "The Election of 666," *Liberty*, August 2006—a commentary that prompted a nice little flurry of hate mail). The same goes for labor unions. They used to be the biggest opponents of immigration. No more. Now most of them are endorsing every open-borders proposal that comes along. Why? Because they too have identified their natural constituency: unskilled, politically unsophisticated workers, just waiting to be organized in support of higher

think that libertarians would do everything they could to decrease that margin. Instead, many libertarians, even candidates of the Libertarian Party, join with labor unions, Mexican nationalists, the hierarchy of the Roman Catholic church, professional advocates of the welfare state, and Bushite conservatives hustling for any vote they think they can get, in attempting to *increase* the number of voters who are likely to approve the largest possible extension of the welfare state.

This would be funny, if it were happening on some other planet.

But thus far, we've been considering only the people who cross America's borders with the honorable intention of working and supporting themselves, whether they actually manage to do so or not. This is the only group that open-border advocates want to notice. Yet there are other immigrants—lots of them. There are (1) the tens of millions of nonworking relatives of the already-immigrated, tens of millions of people whom a liberalized immigration policy would bring to this country under the aegis of "family unification"; (2) the criminal class that has already migrated here in enormous numbers; and (3) quite simply, terrorists.

No one can say how many people are included in the first group, though the number is certainly stupendous. As for the second group, testimony submitted in 2005 to a committee of the House of Representatives by Richard Stana, Director of Homeland Security, reveals that at the end of 2004 there were 49,000 criminal aliens in353federal prisons (15% more than at the end of 2001). Stana—with every sign of unwillingness, employed as he is by the Bush administration—also revealed the existence of 215,000 other criminal aliens for whose incarceration the federal government reimbursed state and local governments during fiscal year 2002 ("data represent only a portion of the population"). Those, of course, are the few people who got caught. Let's make a conservative estimate of the costs of their imprisonment (not of their crimes), and put the bill at about $13,000,000,000. That is one of the small, ancillary, foot-notable costs of uncontrolled immigration.

Terrorism can also be an economic problem. A single terrorist attack can easily cost this country tens or even hundreds of billions of dollars. Which do you think is likelier to reduce the risk of terrorist penetration of America—making it easier to get into the country, or harder?

We do not know how many intended terrorists have been turned back at our borders. We do know that every one of the 9/11 terrorists was an alien, and that several of them were illegal aliens. And evidence of bad intentions never ceases to appear. Last month an example appeared in the government's special green-card program for religious workers. The *Boston Globe*—not exactly an anti-immigrant venue—obtained a copy of Homeland Security's hitherto secret study of the program. It showed that one-third of visa applications were fraudulent, and "instances of fraud were particularly high among applicants from predominantly Muslim countries." Clearly, it is not in the interest of the people of the United States to permit unlimited immigration of clerics from Arabia or unemployed young men from Egypt, no matter how much money they bring with them. But under the principle of open immigration, in they come.

In my experience, proponents of open immigration rarely stay to listen to arguments like the ones I've just tried to outline. If they do, they ordinarily drop their own economic argument and turn to the moral argument about human rights. So

My right to freedom of speech is in no way contingent on the language I speak, on my possession of a job, or on my willingness to give a political oath. A right is absolute. It is conditioned by nothing. It depends on no action of mine. It is endowed by my Creator. It is inalienable. But advocates of the "right" to immigrate see this "right" as far from absolute, unconditioned, or inalienable. They make it dependent on something else. They call it a right, but they don't believe that it is one, any more than I do.

If you say that any country in the world that wants to get rid of its convicts and insane asylum inmates can send them to the United States, as Cuba did in 1980, and the United States is morally obliged to take them in, because they have a right to be here, then I will admit that you are talking about people's *right* to immigrate.

If you say that you welcome the idea of a hundred thousand Wahhabi missionaries being allowed to land in America, with no attempt to check or approve them in any way, and with no regard to their political affiliations or intentions, then I will admit that you are talking about people's *right* to immigrate.

If you say that any nutball political or religious group has the right to import its adherents, by the tens or hundreds of thousands, with the intention of supporting them on public welfare until such time as they are ready to bomb Walmarts all over Kansas and Missouri, then I will admit that you believe in people's *right* to immigrate.

But if you say that you welcome the idea of ten million more unskilled laborers arriving from Mexico, because that is their right, *except* that they should not be permitted to live here unless they get a job, learn English, and swear to support the Constitution, then you're not talking about a right at all. You're just talking about something that you want to happen.

So much, I might conclude, for the issue of rights. Even the proponents of immigration "rights" don't354really take them seriously. But why do people think they do? That's a more interesting question. In my view, it's because of an understandable confusion between the right to immigrate and the right to emigrate.

How many times have you heard somebody bewail the perfectly practical idea of building a fence or "wall" along our frontiers? "It's just like the Berlin Wall!" they cry. Now, before you say, "That's the silliest analogy I've ever heard—the Berlin Wall was meant to keep people *in* their own country, not *out* of somebody else's!", you should grant the fact that immigration and emigration are, from a purely factual or photographic point of view, the same thing. Every act of immigration is necessarily an act of emigration. If you took a picture of Osama bin Laden leaving Quebec, it would be the same picture as one of Osama bin Laden entering New Hampshire.

But the philosophical as well as the practical difference is immense. Jason quarrels with Joanna and walks out of their house. Jason has a perfect right to leave. But he does not have a right to leave for *my house*, despite the fact that his leaving her and his coming to me are, to all appearances, the same act. Someone's right to leave East Germany did not entail that person's right to turn up in the United States, Bulgaria, Burundi, or even West Germany. It was simply the right to leave East

A nation's laws and customs are the framework in which its people live their lives. Life involves enormous investment of time and effort. It requires a framework. It requires stability. It requires a certain amount of predictability. It requires the ability to say, Well, I will buy a home in Hillcrest—without worrying about the possibility that Hillcrest may soon be overwhelmed by immigrants from some Islamic country who decide to ban homosexuality, pork, the Episcopal Church, and slacks on women.

Human life also requires freedom as well as stability—and the more the better, so far as I'm concerned. A real nation is not a prison; but it isn't a tent, either. It isn't something that is constantly being changed and moved. To build a decent house, to make sure that it doesn't collapse like a tent or constrain like a prison, requires an even greater investment than the other projects of human life. It requires an investment in cooperation, self-restraint, commitment to constitutional order, long-continued belief in first principles. A house whose door is always open, a house where everybody has the right to enter, have a good meal, do a little work around the place, and by virtue of his residence, or mere visitation, start remodeling the structure, regardless of its original plan—that is no longer a house. At best, it's a squatters' camp, where anything may happen, as in the squatters' camps that illegal immigrants have erected all over the American Southwest, defying property owners to do anything about it.

To the degree that a nation is like a house, and requires the security of a house, its inhabitants must have the ability to decide whom they wish to invite inside, whom they wish to enjoy the many investments already made in it. If the house is designed to protect individual liberty, its maintenance requires the exclusion of people whose ill-advised decisions might endanger liberty's protective mechanisms.

No one has the right to move to a free country and destroy its freedom. But this is precisely what happens when people who are unused to the political culture of individual liberty, or who disapprove of it, swing the balance of national decisions.

Many libertarians imagine that all economic and political problems will be solved if only the proper economic and political framework is established: free enterprise, limited government, clear recognition of individual rights. But the question is, How can such a framework, such a "house," be preserved? It can't be preserved if people must continually be convinced, by the tens of millions, that liberty is a good idea, better than the welfare state or some structure of political repression and intolerance. It can be preserved only by a culture in which the vast majority of people assume that individual liberty and responsibility are the ultimate political good. Not every culture makes these assumptions.

There is no foreign army occupying Mexico, Canada, or Saudi Arabia. The political systems, the political errors, of these countries are the result of their own355political cultures, just as America's political errors result from its own political culture. An essentially libertarian political system must be supported by essentially libertarian cultural assumptions, by a culture in which virtually no one sees a cartoon satirizing a religious figure and immediately concludes, "Somebody should be punished for this."

Consider the following sequence of events: The employees of a state government demand a raise, and the government refuses, claiming it is out of money. How do the employees react? In one of this continent's many political cultures, they react by arming themselves with machetes and other weapons, occupying the center of the capital city, seizing government offices, blockading roads, burning buses, and doing everything they can to prevent their opponents from demonstrating against them, until such time as their demands are met. And the employees in question are … schoolteachers! Bizarre? Yes, but that's what happened this summer in Oaxaca, Mexico. I'm sorry to be crass, but do you want such teachers migrating to Los Angeles or Des Moines, where they can teach both Spanish and revolutionary tactics?

It would not be difficult for a few million representative citizens of, say, the Arab countries to take up residence in the United States and seriously disrupt or even destroy the American political economy The cost of immigration is now the lowest in history. For just a few hundred dollars, you can get to the United States from any country in the world. If you already have an uncle or a cousin in the States—something that is very likely—you may find it easy to take up residence and get a job. If not, welfare assistance will not be hard to obtain; no one starves in America. And suppose that you are, indeed, one of the great majority of immigrants who want a job and work hard when they get it. What then? Does this mean that the political and social attitudes to which you have been accustomed will simply disappear? I don't think that they will. I think you will probably keep most of those attitudes. I think that the longer you stay in America, the more self-confidence you gain, and the more you and your children are exposed to modern multicultural propaganda, the more likely you will be to insist that America conform to your own cultural assumptions.

That happened to some degree during the heyday of immigration to America in the late nineteenth and early twentieth centuries, which was also the heyday of political bossism in American cities—and of the importation of European socialist ideologies into American political life. And those developments were benign, compared to the impact of current immigration on today's liberal cultures. America might learn a lesson from the turmoil in Holland, where fewer than 10% of the population is Islamic but where maiming and murder are the weapons of choice of Islamic settlers convinced that a liberal society is their enemy, and that they have the right to exploit and destroy it.

Ideally, immigration to America would be restricted to people who understand and support the American constitutional system and the American idea of limited government. But such ideological monitoring is impossible. Most native-born Americans have only a slender hold on the concept of limited government (a good reason not to render the system even more fragile by increasing the numbers of people like them). They will never approve any useful test of ideological sympathies. An oath to support the Constitution is useless. Every president takes such an oath, and you see where that has led us.

The best we can do is to admit immigrants sparingly, not by the tens of millions; to judge their economic fitness by their skills and education, not by their mere presence, and to be especially restrictive about immigration from cultures that do not prepare people for life in a libertarian society. Individual refugees from regions dominated by Islamic fundamentalists should certainly be admitted, but it would be suicide to permit any large or356indiscriminate migration. Meanwhile,

Church people are outraged by the inhuman suggestion that Americans need not welcome every single person who wants to cross the border. Libertarian dogmatists are demanding to know why *I* should call myself a libertarian. And all these people are deploring the hypocrisy of suggesting that "a nation of immigrants" could possibly refuse to admit unlimited numbers of future immigrants.

Well, I'm sorry; I'm not being hypocritical. I'm not saying that I have a right to live in Mexico or France or Saudi Arabia, while denying the right of Mexicans, Frenchmen, or Saudi Arabians to migrate here. As for the "nation of immigrants" cliché: what are we to deduce from that? Every nation is a nation of immigrants. No nation sprang spontaneously out of the soil it currently occupies. The fact that your grandmother, or great-grandmother, or you yourself, originated in some foreign clime … what exactly is this supposed to establish—that there should be unlimited immigration for all time to come? When I moved into my present neighborhood, the population was scant and prices were low; that's why I moved in. Then the population increased, prices went up, and it became very difficult for people like me to do what I did in 1986. Is that a moral problem? Should I try to pass a law guaranteeing that people like me should always be able to move in here?

Let's talk sense. The real problem is the price that must be paid for the immigration policy I advocate. Part of the price is greater security at the borders, less fraud-friendly drivers' licenses and Social Security cards, and (imagine!) an expectation that public officials will do what they are paid to do—enforce the law. But there is a much heavier price. It is the denial of entrance into the United States of people whose "crime" isn't any defect of individual character but simply their lack of job skills, or their origin in a culture that is inimical to liberty. This is a bad thing, as bad (for example) as the fate of the many young people who would fail to get a higher education if, as libertarians suggest, education were privatized. Ideas have consequences, not all of them good.

It doesn't please me to make that admission. Honesty compels it. Having made it, I turn to my open-borders friends, hoping that they will admit the unfavorable consequences of their own ideas. But if experience is any guide, the response they are dying to make is this: "Don't you understand? None of the problems you mention are problems of *open immigration*. They are all problems of *the coercive state*. If there were no minimum wage laws, no labor laws, no Social Security, no welfare programs, no affirmative action programs, no progressive income tax, no government schools, no government entitlements in general; if only people who possessed significant property were allowed to vote; if the populace were fully determined to support all constitutional guarantees of individual freedom; *then there would be no problem with immigration*. No amount of immigration could disrupt the constitutional order, and no one would come and stay in this country if he wasn't contributing to it economically."

That's what libertarian political candidates and spokesmen for libertarian think-tanks say when they're questioned about the amount of tax money that unskilled immigrants and their families take out of the economy because of the welfare state that is now in place: "Certainly, these government programs need to be reformed. But that has nothing to do with *immigration*." They make the same kind of response when they're questioned about the issue of political culture: "Certainly, there are some problems with Mexico's (or Nigeria's, or Saudi Arabia's) political culture. But they're for Mexico (or Nigeria, or Saudi Arabia) to solve. That has nothing to do with *immigration*."

demanded to open the gates of immigration *now*. And every day brings us still more new immigrants, illegal but permanent, who will vote to strengthen the very aspects of our political life that libertarians want to change.

Alexander Pope once parodied authors who had no sense of reality, authors who wrote things like:

Ye Gods! annihilate but Space and Time,

And make two lovers happy.

The libertarian equivalent would be:

Ye Gods! annihilate but the facts of life,

And make our dogmas triumph.

But mere dogmas won't triumph. And they won't help the cause of liberty. It's time to stop believing that they will.

Discussion Questions

1. Cox makes an analogy between a house and a nation. Given that we accept this analogy and do not have a moral obligation to take immigrants into our home, do we still have an obligation to help those outside the borders of our property who are suffering terribly? For example, say our neighbors were poor to start with and their home was washed away in a flash flood. Even if we don't have a moral obligation to take them into our home, do we have a moral obligation to offer them aid, help them find refuge or even rebuild? Does this obligation also apply to a country and those outside the country that need assistance? Discuss your answer.

2. Joel Newman, in his openborders.info blog "My Favorite Three Arguments for Open Borders," argues that we have a moral obligation to take in immigrants from countries such as Somalia, Haiti, and some Central American countries who are experiencing tremendous suffering, because of the benefits to them of doing so. Do we have a moral obligation to admit people in dire straits even though it may bring harm to our own country? Discuss how both Cox and a utilitarian might answer this question.

3. Cox calls for limits on immigration from Muslim countries. However, although the most deadly terrorist attack—the 9/11 Twin Towers attack—was carried out by Muslims, according to the FBI, only 6 percent of all terrorist attacks in the United States are carried out by Muslims. On the other hand, 98 percent of terrorist attacks are carried out by men, in almost all cases young men in their teens and twenties. Given these statistics, would it make more sense to not allow the immigration of young men (maybe between the ages of 12 and 30) into this country? Support your answer.

4. Today's targets of immigration are liberal welfare states, offering large packages of individual rights and state-provided services. These benefits are not inherited "givens." Their price is paid both with money and with costly exertions of tolerance and respect for rights. In these societies, even persons with the "true" religion must refrain from hurting unbelievers; gender rights and freedom of speech are protected from traditional prejudices. Does everyone in the world, regardless of skills

JOEL NEWMAN

My Favorite Three Arguments for Open Borders

Joel Newman has a degree in history and is a teacher in Beaverton, Oregon. He is also a writer and a blogger for the website Openborders. In the following piece, Newman presents three arguments in favor of open borders. He also addresses counterarguments to an open border policy.

Critical Reading Questions

1. What three qualities constitute a strong argument for open borders?

2. Why does the principle of fairness support an open border policy?

3. What is "geographical roulette"?

4. How does Newman use the American Civil Rights Act of 1964 to support his position on open immigration?

5. What is John Rawls's "veil of ignorance," and how does Newman apply it to coming up with an immigration policy?

6. How does Newman respond to the argument for coercion against immigrants that immigration hurts native workers by imposing financial burdens on them and threatens their distinctive culture?

7. How does Newman address the problem of "Swamping," referring to an immense migration flow in a short period of time?

There are a prodigious number of moral arguments for open borders. Openborders.info lists libertarian, utilitarian, egalitarian, and other types of cases for open borders, with a number of arguments within each category. What are my favorite arguments for open borders?

Before answering this question, it is important to consider what constitutes a strong argument for open borders. First, it should be logical. Second, it should not be overly complicated, requiring layers of explanation. Finally, it should… appeal to "basic moral intuition;" it should resonate emotionally. While each of the following arguments may not contain all of these elements, they have at least some of them.

Joel Newman, "My Favorite Three Arguments for Open Borders" *Open Borders*, August 11, 2015. https://openborders.info/blog/favorite-arguments-open-borders/. Used with permission of the author.

In descending order of strength, here are the three best arguments, in my opinion:

1. Open borders allow people to get their share of birthright equal liberty.

advanced countries. Among other negative consequences, restrictions prevent would-be immigrants from benefiting from the place premium, which allows a person from a disadvantaged country to earn much more in an advanced country, even without an increase in the person's skills. An open borders policy addresses the unfairness associated with place of birth, while immigration restrictions maintain it. (Openborders.info communicates the argument thusly: "open borders rectifies a glaring and morally problematic inequality of opportunity based on birthplace.")

One measure of the argument's potency is its use by many open borders advocates. Joseph Carens, who made the idea of open borders "intellectually respectable," states that

In a world of relatively closed borders like ours, citizenship is an inherited status and a source of privilege. Being born a citizen of a rich country in North America or Europe is a lot like being born into the nobility in the Middle Ages. It greatly enhances one's life prospects (even if there are lesser and greater nobles). And being born a citizen of a poor country in Asia or Africa is a lot like being born into the peasantry in the Middle Ages. It greatly limits one's life chances (even if there are some rich peasants and a few gain access to the nobility)… Is there some story that they [people in rich countries] can tell to the human beings on the other side of this rich-poor divide as to why these existing arrangements are fair? Would they think the arrangements were just if they were in the position of the excluded? I don't think so.[1]

Using the terms "geographical roulette," Stephan Faris, author of *Homelands: The Case for Open Immigration*, likewise notes that "our system of passport controls, immigration restrictions, and closed borders has created a world in which few factors shape a child's life as much as one she can do nothing about: the flag under which she was born." Bryan Caplan of George Mason University states that "when most people are on earth are dealt such a bad hand, to try to stop them from bettering their condition seems a very cruel thing to do to someone." And R. George Wright of Indiana University has written, in "Federal Immigration Law and the Case for Open Entry," how those with the "undeserved good fortune to have been born in the United States resist… accommodation of the undeservedly less fortunate."

[T]his argument is a powerful one… It is logical and simple. It also could appeal to the moral intuition of many, especially Americans, who oppose discrimination against others based on factors they cannot control. The American Civil Rights Act of 1964, for example, forbids discriminating against someone based on their skin color or gender, traits that people are born with. As Mr. Caplan asks, "What would you think about a law that said that blacks couldn't get a job without government's permission, or women couldn't get a job without the government's permission, or gays or Christians or anyone else? So why, exactly, is it that people who are born on the wrong side of the border have to get government permission just to get a job?"

2. If before you were born you didn't know where you would be born (and who your parents would be) but could choose what the laws would be, you would choose laws allowing open borders because they could be key to your well-being

This argument was developed by Mr. Carens. In "Aliens and Citizens: The Case for Open Borders," he uses John Rawls' question about "what principles people would choose to govern society if they

agreement among those in the original position would be to permit no restrictions on migration (whether emigration or immigration)." (p. 258) (The original position means when people operate360behind the "veil of ignorance" about their personal situation when choosing society's laws.)

This argument is very logical and probably appeals to the moral intuition (or at least the self-interest) of many people by helping them achieve a global perspective. I have not seen the argument used frequently, however, probably because its logic is somewhat intricate…. Despite its infrequent use, it is a potent case for open borders.

3. Immigrants, like everybody else, have a right to not to be harmfully coerced, and implementation of immigration restrictions constitutes harmful coercion….

This argument was formulated by Michael Huemer of the University of Colorado. In "Is There a Right to Immigrate?" he argues that unless special circumstances can be identified, physically barring immigrants from entering a country and expelling those already inside a country are violations of immigrants' rights not to be harmfully coerced. (p. 434) Mr. Huemer addresses a variety of justifications for this coercion against immigrants, including claims that immigration hurts native workers, that immigrants fiscally burden natives, that the government should prioritize the interests of disadvantaged natives, and that immigration threatens natives' distinctive cultures. Mr. Huemer effectively shows that these justifications do not override immigrants' right not to be harmfully coerced through immigration restrictions.

This argument is logical and straightforward. It is not necessarily morally intuitive, since some people see government as being in the business of harmful coercion through taxation, regulation, and law enforcement, in order to serve the greater good….

Mr. Carens and Mr. Huemer include caveats to their arguments indicating that extremely harmful swamping under open borders could override them. (Swamping refers to an immense migration flow in a short period of time.) Unfortunately, dispelling concerns about swamping is not as straightforward as presenting one of the three strong prima facie arguments enumerated in this post, since no one knows with certainty what migration flows might look like under open borders or what the effects of swamping would be, should it occur. Vipul has written posts which dispel concerns about swamping and suggest factors that would limit migration initially after implementing open borders, such as the availability of jobs, wage levels, connections in host countries, and moving arrangements….

One can also look at situations where borders are currently open for clues about migration flows under worldwide open borders. Philippe Legrain, in *Immigrants: Your Country Needs Them*, observes that Britain hasn't been deluged with East Europeans despite the ability of citizens from relatively poor East European countries to come and work there. (p. 328) …

On the other hand, co-blogger Nathan Smith, in his recently published paper "The Global Economic Impact of Open Borders," writes that "Gallup polls have found that hundreds of millions of people worldwide would like to emigrate permanently. But economic models of open borders tend to predict

Uncertainty is always associated with radical policy changes, whether they be the abolition of slavery or the enfranchisement of women. This uncertainty should not prevent doing the right thing, however. The three arguments in this post powerfully show that, in the context of immigration policy, implementing open borders is the right thing to do.

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361

Discussion Questions

1. Does the principle of fairness, on its own, justify open borders? What happens in cases where an immigrant requires public support or welfare? Is it fair that citizens of a country have to work to support immigrants who are unable to work to support themselves? Support your answer.

2. Newman argues that immigrants have the "right not to be harmfully coerced through immigration restrictions." However, most rights ethicists maintain that moral rights do not stand on their own but are linked to duties and apply only to the pursuit of our legitimate interests. Referring back to the chart "Rights Ethics: Considerations for Thinking about Moral Issues" at the top of page 34, discuss whether the right not to be "harmfully coerced through immigration restrictions" is an absolute right or a right limited by competing rights and duties and, if so, what are some of these competing rights and duties?

3. Discuss how Newman might respond to Cox's argument that very few open-border people actually believe in a "right to immigrate," since the implication of this position is that we would be morally obligated to take in "convicts and insane asylum inmates" as well as members of terrorist organizations. Which person presents the best argument? Support your answer.

4. Ecologist Garrett Hardin uses the metaphor of a lifeboat in which each rich nation amounts to a lifeboat full of comparatively rich people.[27] Each poor nation is represented by a much more crowded lifeboat in which the poor continually fall out and, after swimming around for a while, head toward the rich lifeboats. However, the rich lifeboats are already filled almost to capacity, and taking in more people runs the risk of swamping the boats. Under such circumstances, Hardin argues that it would be catastrophic to admit the poor of the world into our nations or lifeboats. Instead, we must protect our borders and keep out immigrants as well as refrain from sending aid to poorer nations, which, in the long run, would only lead to increased reproduction and more poverty in these nations. Evaluate Hardin's argument. Discuss also how both Newman might respond to his argument.

CASE STUDIES

1. BARBARA GRUTTER V. THE UNIVERSITY OF MICHIGAN LAW SCHOOL

The Supreme Court ruled in favor of Grutter. However, while it rejected the use of points as a means of achieving diversity, it did allow race to be used as a criterion in considering individual362applications. In 2006 the people of Michigan voted in favor of a ban on affirmative action in public colleges and universities.

Discussion Questions

1. What is "diversity"? Discuss whether or not racial diversity is a legitimate and desirable educational goal for colleges and universities.

2. In its ruling the Supreme Court stated that while diversity may be a worthwhile goal, the use of racial group preferences, such as quotas or point systems, undermines the notion of equality "where race is irrelevant to personal opportunity and achievement." Do you agree? Support your answer.

3. Critically analyze how justice as reparation, in terms of making up for past discrimination, be weighed against the principle of equality in the job market and in accepting applicants for college. Relate your answer to Ross's concept of prima facie duties and Rawls's two principles of justice.

4. In 1992 the application of Cheryl Hopwood, a white student from a poor family, to the University of Texas Law School was turned down even though she had better grades and LSAT scores than many of the minority students who were admitted.[29] Is it fair that minorities who come from middle-class families be given preferential treatment over whites from economically disadvantaged families? Discuss how President Johnson and Boxill might each respond to this question.

5. Many colleges extend preferences to athletes. Compare and contrast this policy with affirmative action policies.

2. HURRICANE KATRINA AND RACISM

On August 29, 2005, Hurricane Katrina slammed into the Gulf Coast of Louisiana. The hurricane was one of the most devastating in U.S. history. Almost two thousand people—mostly poor African Americans—died in the wake of Hurricane Katrina, and thousands of others were left homeless. While residents who had private vehicles were able to evacuate the city, thousands of the city's poor remained behind to bear the brunt of the storm. The following day the levee system began giving way, flooding 80 percent of the city. About thirty thousand refugees—mostly poor African Americans—sought shelter in the Superdome, where they remained for days in squalid conditions with insufficient food and water, inadequate toilet facilities, and no air conditioning.

Government relief was slow to come, and when it finally arrived, it was sorely inadequate. Some of the refugees still do not have permanent homes and are still waiting for assistance from FEMA. Headlines throughout the world picked up on the connection between the slow response and racism: "Hurricane Katrina has come and gone—leaving behind one strong message—Racism still exists in America" (*Hindustan Times*, India). "Already the finger of racism is being pointed at official Washington for the slowness of federal agencies in responding to the disaster…. Such is the legacy of racism that to this day haunts the American psyche" (*Manila Standard Today*, Philippines). According to the 2010 U.S. Census the population of New Orleans is down 20 percent from 2000.

perpetuate racism, and what might be done about it.

2. Some of the money that had been allocated by the government to upgrade the levees in New Orleans had been diverted into the war in Iraq.[30] Discuss ways in which racism influences a government's spending priorities.

3. Looking at your own town or city, discuss ways in which racism affects government spending on public facilities such as schools, libraries, and roads, as well as government responses to dangers to public health, poverty, and crime. Discuss possible solutions for creating a more equitable society.

3. GRANTING ILLEGAL IMMIGRANTS IN-STATE COLLEGE TUITION

A 1982 Supreme Court decision entitled undocumented illegal immigrants to a free education from kindergarten through grade 12. About 65,000 undocumented students graduated from American colleges in 2008 alone.[31] Miguel ("Mike") and his parents crossed the border illegally from Mexico when he was only two. The family has been living in California for the past fifteen years where his father works as a laborer and his mother as a chambermaid. Mike graduated valedictorian of his class and also won a prestigious science award. Given his family's financial situation, he can only go to college because California is one of only about twenty states, as of 2018, that allow in-state tuition for children of undocumented immigrants who have attended high school in their states. This practice has been challenged in federal court as a violation of federal immigration law.

Several states have already banned undocumented immigrants from their public colleges and universities, arguing that a college education is a scarce resource and tax money should be spent helping citizens get a college education rather than funding the education of undocumented immigrants. Critics also argue that the policy provides an enticement for people to come to the United States illegally. Supporters of in-state tuition argue that it is wrong to punish children for their parents' actions. In addition, the chance for a college education provides an incentive for bright students to reach their potential as productive members of society.

Discussion Questions

1. Discuss the pros and cons of giving in-state tuition to undocumented students. Discuss also how a cultural relativist, a rights ethicist, and a utilitarian would most likely respond to the debate. Discuss also what policy Carens might suggest regarding this issue.

2. Do parents such as Mike's who face a life of abject poverty in their country of origin have a moral right, or even a duty, to move to an area of the world, including a state where their children can get a college education, where their children can have a brighter future? Support your answer. Discuss how Leahy and Newman might answer this question.

3. The future of the DREAM (Development, Relief and Education for Alien Minors) Act is currently up in the air. The Act would provide undocumented graduates of American high schools who had been residing in the country at least five years prior to graduation the364opportunity to obtain permanent residency by graduating from college (including community college) or serving in the military for two years. Discuss the moral issues raised by the DREAM Act.

raids and air strikes by the Sudanese army. As a consequence, rebel forces have boycotted peace talks. The referendum on the status of the Darfur region, scheduled for 2012, has also been delayed due to ongoing conflicts.

Makau Mutua, director of the Human Rights Center at the State University of New York at Buffalo, says that racism is at the root of the conflict.[32] The Sudan is a forced merger of Muslim Arabs in the north and black Africans in the south who are Muslim converts. Like most postcolonial nations in Africa, the Sudan is the result of European imperialism and the carving up of Africa into sovereign states without regard for traditional tribal and ethnic divisions.

Although the United States has imposed economic sanctions on Sudan, Western powers have been accused of covertly worsening tensions in order to deter further oil deals between China and the Sudan as well as to draw attention away from the conflicts in Iraq and Afghanistan.

Discussion Questions

1. Some critics argue that the United States has done so little because of racism and our history of slavery and that if the victims of the violence in Darfur had been white, we would have intervened a long time ago. Critically analyze the claim that our lack of effective response to the crisis is partially the result of racism.

2. Discuss whether the United States and other Western countries—especially those that have benefited from colonialism—have a moral duty to offer assistance to the people of Darfur who are living in severe poverty and fear for their lives as a result of the conflict. If so, what is the basis of this duty? Do we as individuals also have a duty to provide assistance? Support your answers. Discuss how Boxill would most likely answer these questions.

3. Matua argues that only an inclusive democracy will save the Sudan from being partitioned into two states: one black African and one Arab. Is our interest in bringing democracy to non-Western nations, such as the Sudan and Iraq, another form of colonial or “Kiplingesque” paternalism? Or is it based on genuine respect for the dignity of people living in these nations? Support your answers.

5. “NOT IN MY BACKYARD”: ENVIRONMENTAL RACISM AND TOXIC WASTE

In 1991 Chemical Waste Management (Chem Waste), the country’s largest hazardous-waste company, received approval to build California’s first commercial toxic-waste incinerator at its365Kettleman Hills dump site in the San Joaquin Valley. A few weeks later Chem Waste, the state, and the county were slapped with a lawsuit claiming discrimination and violation of the residents’ civil rights. The suit alleged that the decision to place the toxic-waste incinerator in the almost entirely Hispanic community was part of a national pattern of situating hazardous-waste facilities near minority areas.

It wasn’t until 1994, when President Clinton issued Executive order 12898 on environmental justice, that the environmental racism movement received official federal recognition. With globalization and the increase in consumer waste as well as tighter environmental regulations in developed nations, the dumping of toxic waste has gone global, with the poorest nations serving as our toxic-waste

burned in open fields, releasing toxic chemicals into the groundwater and carcinogenic fumes into the air. Thus, those who did not create the waste in the first place are made to pay the price of the economic progress of the affluent.

Discussion Questions

1. Discuss whether the above cases are illustrations of institutional racism.

2. According to University of California professor Robert Bullard, minority and poor communities are the least likely to fight back against toxic-waste sites. Indeed, some poor communities welcome waste sites because they create much needed jobs and tax revenue. Discuss whether the placement of toxic-waste sites in poor areas would be justified under utilitarianism?

3. Critically evaluate the practice of affluent nations dumping toxic waste in poor countries. Do we have a moral responsibility to make up for the harms we have caused the people in these countries, or do we merely have a responsibility to stop the harmful practice? Support your answer.

4. Using a utilitarian calculus, decide whose "backyards" companies should use as toxic-waste dumps. Should the people who contribute the most to society also receive the most protection from toxic waste?

6. ENVIRONMENTAL RACISM IN FLINT, MICHIGAN

In 2014 the city of Flint, Michigan, switched from a Detroit drinking water supply to the Flint River in order to save money. Following the switch, contaminants from the Flint River, as well as lead leeched by the contaminants from the water, left thousands of residents sick, the majority of whom were black and poor. Flint city officials and Michigan State Governor Rick Snyder were slow to respond to or even acknowledge the health crisis, sparking charges of environmental racism, a term referring to the disproportionate exposure of black populations to industrial waste and contaminated environments. Representative Dan Kildee, a Democrat representing Flint, called race "the single greatest determinant of what happened in Flint." He added,366"They treated it like it was a public-relations problem not a public problem for the people in Flint."

Environmental racism has also been blamed for the location of black neighborhoods in the most flood-prone parts of New Orleans and the slowness of the government's response to the desperate needs of those left stranded and homeless immediately after Hurricane Katrina. Garbage incinerators have also been disproportionately located in African American neighborhoods where residences lack the political power to block them.

Over a year later, affected residents from Flint filed a class action lawsuit against the city. After several setbacks, in 2018 the case was given permission to go ahead by the U.S. Supreme Court.

Discussion Questions

1. Discuss whether the above cases are examples of institutional racism.

2. According to Robert Bullard, a Texas Southern University professor and leader in the campaign against environmental racism, minority and poor communities are the least likely to fight back

4. Using a utilitarian calculus (see page 22), decide whose "backyards" companies should use as toxic-waste dumps. Should people who contribute the most to society also receive the most protection from toxic wastes? Discuss how former president Lyndon B. Johnson would most likely answer this question.

7. DRUGS, SOCIOECONOMIC CLASS, AND RACE

Senior Federal U.S. District Court Judge Jack Camp was arrested in 2010 in an undercover drug bust while trying to purchase cocaine from an FBI agent. Camp was paying an exotic dancer for sex and together they were also smoking marijuana, snorting cocaine, and using a synthetic form of heroin. When police showed up for the drug bust, Camp was armed with two handguns. Camp, who had been appointed to the federal bench in 1987, resigned his position after pleading guilty to three criminal charges. He was sentenced to 30 days in jail and 400 community service hours and fined.

Sharanda Purlette Jones, on the other hand, a black woman with no prior criminal record, was sentenced to life without parole for conspiracy to distribute crack cocaine. Government informants had asked Jones during a taped telephone call if she knew where they could buy drugs. Jones said she would ask a friend where the couple might be able to buy drugs. Other than the taped phone call, there was no physical evidence, including no drugs or video surveillance, presented at trial connecting her to drug dealing. Jones was granted clemency by President Obama in December 2015 and released from prison after serving 17 years of her life sentence.

367

Discussion Questions

1. Jones was arrested as part of a drug task force operation in Terrell, a small town in Texas where the majority of residents are white. All 105 people arrested as part of the conspiracy in the town, on the other hand, were black. Studies have found that arrest and incarceration rates related to illegal drugs are much higher in low-income black communities than in similar white communities, independent of the prevalence of drug use in the communities. Discuss how racial stereotypes influence perception of who is a drug dealer.

2. As noted earlier, about half of the people in federal prison are there for drug offences. Is prison appropriate for nonviolent drug offenders? If not, discuss appropriate alternatives.

3. Philosopher Sissela Bok writes, "As the police officer becomes more comfortable with lies and their moral justification, he or she is more apt to become casual with both."[33] Milton Mollen, who led a commission that investigated willful ignorance of drug-related corruption among New York City police officers in the 1980s, agrees. He noted, "Psychological barriers to lying can begin to break down making lies seem more necessary and less reprehensible."[34] Is the use of informants and undercover agents in making drug busts ethically justified in these cases—or do the harms outweigh the benefits? Support your answer. Discuss also how a utilitarian might answer this question.

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Previous
Page

Next
Page

Contents

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